

AGREEMENT
BETWEEN
THE CITY OF PEABODY
AND
THE PEABODY POLICE
BENEVOLENT ASSOCIATION

EFFECTIVE JULY 1, 2018
EXPIRING JUNE 30, 2021

MEMORANDUM OF AGREEMENT
BY AND BETWEEN
THE CITY OF PEABODY
AND
THE PEABODY POLICE BENEVOLENT ASSOCIATION

EFFECTIVE JULY 1, 2018
EXPIRING JUNE 30, 2021

WHEREAS, the City of Peabody, hereinafter the "City" and the Peabody Police Benevolent Association, hereinafter the "Association" have met in collective bargaining for the purposes of negotiation the "wages, hours, standards of productivity and performance and any other terms and conditions of employment..." for a bargaining unit consisting of all employees of... the City's Police Department who hold the rank of Patrol Officer, Sergeant and Lieutenant, but excluding Captains, Deputy Chief, Chief and all contract employees and

WHEREAS, as a result of such meetings, the City and the Association have reached agreement as concerning said subjects of bargaining and

WHEREAS, Massachusetts General Laws, Chapter 150E, Section 7, requires that such agreements be reduced to writing it is

NOW, THEREFORE, in consideration of the mutual promises and agreements herein contained, the parties mutually agree as follows:

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ARTICLE I RECOGNITION AND ASSOCIATION SECURITY

SECTION 1. In Accordance with the provisions of Massachusetts General Laws, Chapter 150E (Chapter 1078 of the Acts of 1973), the Mayor of the City of Peabody and the City of Peabody and/or any agent appointed by either, hereby recognize the Peabody Police Benevolent Association as the exclusive bargaining agent for the following bargaining unit: all employees of the City's Police Department who hold the rank of Patrolman, Sergeant, Lieutenant, but excluding Captains, Deputy Chief, Chief, and all civilian employees.

SECTION 2. The employer will not aid, promote or finance any labor group or organization which purports to engage in collective bargaining or make any agreement with any such group or individual for the purpose of undermining the Association, or changing any condition in this agreement.

SECTION 3. ASSOCIATION DUES

Pursuant to the provisions of General Laws Chapter 180A, Section 17A, Association Dues shall be deducted by the City, weekly, from the salary of each employee who executes and remits to the City a written authorization for payroll deduction of association dues, as well as fees and/or other assessments. Remittance of the aggregate amount of dues shall be made to the Association Treasurer in accordance with present practice.

SECTION 4. AGENCY SERVICE FEE

Pursuant to General Laws, Chapter 150E, Section 12, it shall be a condition of employment that on or after the thirtieth (30th) day of employment in the bargaining unit, or the execution date of this agreement, whichever is later, each and every member of the bargaining unit shall pay to the Association an agency service fee which shall be deducted weekly from the salary of each employee and shall be equal in amount to the sum set from time to time by the association as their weekly dues, but not more than is proportionately commensurate with the cost of collective bargaining and contract administration. Aggregate amount of agency fees shall be made to the Association Treasurer together with Association Dues as provided in Section 3.

The Association agrees to indemnify the city for damages which the city may be requested to pay by an administrative agency or court of competent jurisdiction of last resort as a result of the City's compliance with this section, provided any such sum of damages is limited to the amount of agency service fee(s) deducted from the payable to the particular suitors (claimants) who are named party or parties plaintiff but to no other person.

ARTICLE II MANAGEMENT RIGHTS

SECTION 1. The Association recognized that the City of Peabody, through its Police Department, has the paramount duty to preserve the peace, life and property, prevent crime, apprehend criminals and enforce the law within the City of Peabody.

The Association also recognizes that, subject to the terms and conditions of this agreement and applicable law, the control and administration of the Police Department is vested in the Mayor and the Chief of Police. This responsibility, imposed upon the City by law and enforced under the control and management of the Mayor and the Chief of Police, prohibits the city from delegating to others, or otherwise dividing its obligations, authority and duties to make management decisions, except as provided or permitted by Massachusetts General Laws Chapter 150E.

The Association therefore recognizes that, subject to the terms and conditions of this agreement and applicable law, the management of the City and direction of its police force, including, but not limited to the right to exercise control and discretion over its organization; to determine the level of services to be provided; to determine the methods and means by which its operations are to be conducted; to determine the content of job classifications; to transfer and/or assign employees; to discipline, demote, suspend and discharge permanent employees for just cause; to determine the time and length of work shifts; to separate employees from their positions due to lack of work or lack of money; to abolish positions; to establish and enforce reasonable rules and regulations not inconsistent with or in conflict with this agreement and subject to applicable law is vested and reserved exclusively to the City and the Chief of Police.

SECTION 2: The City reserves the right to contract out or hire employees not part of the bargaining unit to perform telephone/dispatch duties and parking ordinance enforcement, if it so desires. The City will not layoff bargaining unit personnel to put these programs into effect. Additionally, the City agrees to grandfather certain present unit members who have long years of service as police dispatchers. Officers Bakula and Cuzzi shall be grandfathered as police dispatchers during their tenure with the Police Department. Officers Levesque and Jones presently serve as police dispatchers. Between these two officers the senior officer shall be grandfathered as a police dispatcher during his tenure and fill a third police dispatcher position. Should the senior officer (Bakula or Cuzzi) be unable to hold an assignment due to long term illness or injury in excess of thirty calendar days, the junior officer (Jones or Levesque) shall be allowed to fill the vacant position until the absent officer returns to duty. Should Officer Bakula or Cuzzi, retire from the Department, then the junior officer (Jones or Levesque) shall be grandfathered as a police dispatcher during his tenure.

Should the City exercise its right to utilize "non"-police personnel to perform dispatching duties, nothing in this agreement shall preclude the City from calling in "non"-police officer dispatchers, in lieu of calling a police officer on an overtime basis.

ARTICLE III GRIEVANCE PROCEDURE

Complaints, disputes, or controversies of any kind which arise between one or more employees and the City or its agents concerning the working conditions, hours of work, wages fringes or rates of pay referred to in this agreement, or which are provided for by any statute, rule, regulation or policy which is not in conflict with this agreement, may be processed as a grievance under the following procedure:

Step 1. Grievances may be first presented by the employee and/or the Association and/or the union steward within thirty (30) days of the occurrence or reason to know of the matter which gave rise to the grievance, to the superior officer involved, and an earnest effort shall be made to adjust the grievance in an informal manner the aggrieved employee may communicate with his steward over the department communication systems, telephone or other available means to advise him of the grievance. The Officer in Charge may, on request, permit the employee and/or the steward to be excused for a reasonable period (as determined by the superior officer) from their regular duty, without loss of pay, for the purpose of a meeting to discuss the grievance.

Step 2. If the grievance is not resolved in Step 1, the grievance shall be then reduced to writing by the Association and presented to the Chief of Police within forty (40) days of the occurrence of the matter or incident upon which the grievance is based. The Chief shall meet with the grievance committee within five (5) days from the time the grievance is presented to him and he shall answer the grievance in writing within forty-eight (48) hours after the meeting.

Step 3. If the grievance is not resolved at Step 2, the grievance committee may refer the complaint to the Mayor within seven (7) days from the receipt of the step 2 answer. The Mayor or his representative shall meet with the grievance committee within five (5) days to discuss the grievance and will answer the grievance in writing within five (5) days after the meeting.

Step 4. If the grievance is not resolved at Step 3, the Association, and only the Association, may submit the grievance to arbitration, as hereinafter set forth submission to arbitration shall be made within thirty (30) calendar days, written notice of said submission shall be given to the City by delivery in hand or by mail, postage prepaid, addressed to the attention of the Mayor. The arbitrator shall be selected by mutual agreement of the parties. If the parties fail to agree on the selection of a single arbitrator, either party may request the American Arbitration Association to provide a panel of arbitrators from which a selection of a single arbitrator shall be made in accordance with the rules of the American Arbitration Association. The parties hereto shall share equally the fee of the arbitrator.

All the grievances beyond Step 1 shall be presented writing through the steps of the grievance and arbitration procedure shall state, in reasonable detail, the nature of the grievance and the remedy requested.

The dispute as stated in the request for arbitration shall constitute the sole and entire subject matter to be heard by the arbitrator unless the parties agree to modify the scope of the hearing. The award of an arbitrator shall be final and binding upon the parties provided that the arbitrator shall not alter, amend, add to or subtract from the express provisions of this agreement.

Any of the time limits outlined in this agreement may be changed or extended at any time by mutual agreement of the parties in writing. Grievances of a general nature or affecting a group of employees may be filed at Step 2 by the Association.

Any dispute arising between the Association or an employee(s) and the employer which is submitted as a grievance for resolution under this agreement shall not be arbitrable unless it involved a question of interpretation or application of this agreement.

Permanent employees shall not be disciplined or discharged except for just cause. Any dispute relative to discipline or discharge may be subject to grievance or arbitration under the terms of this agreement, with the option in an employee to proceed at Step 4 of the grievance procedure, or may be processed respectively before a retirement board and/or the Civil Service Commission; provided, however that an employee may not pursue both remedies in terms of the same dispute, but must elect between them in writing. If an employee elects arbitration, any action previously taken by the appointed authority pursuant to Chapter 31 will be considered the equivalent of a Step 4 determination; and his election in writing will constitute the grievance hereunder.

Notwithstanding any contrary provisions of this agreement, the discipline or discharge of a probationary employee shall not be subject to grievance arbitration.

ARTICLE IV BULLETIN BOARD AND OFFICE SPACE

The City shall provide space for the bulletin board in the Police Station to be used by the Association for the posting of notices and other Association Business, and to the extent practicable, office space for the Association Files.

ARTICLE V PAID HOLIDAYS

A. The following holidays shall be paid for all members of the Police Department.

New Year's Day January 1	VJ Day Second Monday In August
Martin Luther King's Birthday Third Monday in January	Labor Day First Monday in September
President's Day Third Monday in February	Patriot Day September 11
Evacuation Day March 17	Columbus Day Second Monday In October
Patriot's Day Third Monday in April	Veteran's Day November 11
Memorial Day Last Monday in May	Thanksgiving Day Fourth Thursday in November
Independence Day July 4.	Christmas Day December 25

B. In addition to the above holiday schedule, each permanent member of the department shall be granted a holiday on his birthday: if such birthday falls on one of the above holidays and alternate date may be chosen at the member's option with approval of the Chief.

C. In addition to his regular weekly compensation, each employee shall receive an additional days pay (computed at $\frac{1}{4}$ of his weekly regular compensation for each said paid holidays.

ARTICLE VI BLUE CROSS/BLUE SHIELD

Effective January 1, 2009, the City of Peabody shall pay eighty-five percent (85%) of the premium rate of the Blue Cross-Blue Shield plans or equivalent coverage, and further agrees to pay eighty-five percent (85%) of any increases in said rates with the employee contributing fifteen percent (15%) thereof. The City shall maintain an IRS section 125 plan in order that the share of the employee shall be payable by pre-tax dollars.

Co-pay charges applicable to the health insurance plans effective July 1, 2008 as follows:
Office visits – from \$5 to \$10 for the HMO Blue plan (with office visits for the Blue Care Elect plan to remain the same at \$15):
Emergency room – from \$25 to \$50 for both plans
Retail drug prescriptions – from \$5/10 to \$10/\$15/\$30 for both plans
Mail order drug prescriptions – from \$10/\$20/\$30 to \$20/40/\$70 for both plans

ARTICLE VII OVERTIME RATES

Section 1. Overtime pay will be compensated at time and one half the hourly rate as may be required by General Laws, Chapter 147 Section 147C. Such hourly rate shall be computed as on fortieth (1/40) of the weekly rate.

Section 2. Regular officers shall be given first opportunity at accepting overtime assignments being offered to reserve officers or other persons outside of the bargaining unit.

Section 3. Hold-overtime. Employees held over after the scheduled expiration of their shift shall not receive overtime compensation for the first thirty (30) minutes, the grace period. All work in excess of thirty (30) minutes will be overtime work with the guaranteed minimum of two (2) hours tabulated to the next full hour.

Section 4. Overtime shall be distributed fairly and equitably to all employees within ranks, in accordance with the present department practices.

Section 5. Call Back Work. Any employee called back to work on the same day after having completed his assigned work and left his place of employment and before his next regular scheduled starting time, shall be paid at the rate of time and one-half for all hours worked on recall, except that he shall be guaranteed a minimum of four (4) hours pay at his overtime rate.

ARTICLE VIII VACATIONS

Section 1. Vacation

- A. If a permanent member of the Police Department has been a full-time continuous employee of the City for more than six (6) months, but less than five (5) years, he/she shall be granted two (2) weeks vacation.
- B. If a permanent member of the Police Department has been a full-time continuous employee of the City of Peabody for at least five (5) years but less than ten (10) years, he/she shall be granted three (3) weeks vacation.
- C. If a permanent member of the Police Department has been a full-time continuous employee of the City of Peabody for more than ten (10) years he/she shall be granted four (4) weeks vacation.

Section 2. Termination

Upon termination of employment, other than by discharge for cause, an employee shall receive payment equal to the proportional amount of vacation pay he or she would have received had the termination not occurred. If termination is caused by death, such payment shall be made to the employee's spouse or beneficiary in accordance with the city group life insurance policy.

Section 3. Carry-Over

One week of vacation leave may be carried over into a subsequent year with the approval of the Chief, provided that the request is made at the time the vacation schedule is posted prior to taking the summer vacation.

Section 4. Vacation Schedule.

- A. The current departmental policy of allowing 3 men on vacation from each division at time shall continue
- B. In the event that an employee is required to appear in court on a regularly scheduled vacation day, he shall be entitled to an additional day of vacation.
- C. Members of the department may reserve three (3) days of annual vacation entitlement to be used in single day increments. The utilization of such single days shall be subject to the application procedure established for time due/personal day leave.

Section 5. Vacation Leave Credits- M. G. L. C 41, S 111 F

Vacation leave credits shall accumulate and accrue during an employee's injured leave under C 41, S 111F, in accordance with past practice. Vacation leave credits shall vest on January 1 each year. In the event an employee is absent from duty on injured leave and said absence arises from the same injury or reoccurrence thereof and is more than 90 calendar days, cumulatively and not necessarily consecutively, in any calendar year commencing January 1, then upon the return from injured leave, said employee's vacation credits shall be pro-rated for that calendar year to reduce such credits for that year, to the extent not therefore used. By proportion of time said injured leave absence bears to a calendar year (i.e. an employee who is vested with 4 weeks vacation credits on January 1, is injured on March 1 and returns from injured leave on December 1 of that year, and has not taken any vacation that year, shall only be entitled to 1 week of vacation for that calendar year).

In the event that said employee is not authorized to take his vacation prior to the end of the calendar year, he/she shall be entitled to carry over into the next calendar year, for use during such year, all such vacation, notwithstanding the provisions of this article.

In the event an employee retires from service with the department without first returning from injured leave, then his/her effective date of retirement shall be treated as the date of his return from injured leave for the purpose of computing vacation payment to him/her upon his retirement.

ARTICLE IX NO DISCRIMINATION

The parties to this agreement agree that they shall not discriminate against any person because of race, creed, color, sex, or age and that such person shall receive the full protection of this Agreement.

ARTICLE X ASSOCIATION BUSINESS LEAVE

Section 1.

- A. Effective July 1, 1989, Forty (40) tours of duty per fiscal year shall be established as a bank for union business. Tours of duty in excess of the bank will not be reimbursed and unused bank tours will not be carried forward to the next year.

B. The following elected union officials will be eligible to draw against the bank:

1. President
2. Vice President
3. Secretary/Treasurer
4. Superior Officer Representative
5. Stewards/members of the Bargaining Committee

C. "Union Business" is defined as grievance investigations, contract negotiations, grievance meetings, arbitration hearings, labor board hearing preparation for contract negotiations, civil service hearings as a witness, including disciplinary cases and meetings of the insurance advisory committee.

D. In order to be eligible to draw against the bank, an eligible union official must give reasonable notice of at least seventy-two (72) hours to the superior officer in charge of his intent to devote an off-duty tour to one of the functions listed in the preceding paragraph. The superior officer in charge will keep track of the draw by logging the tour as a charge against the bank and by crediting the employee with a compensatory tour. Such tours shall not be compensated but may be used by the employee in accordance with present practice for "days owed", so long as a replacement is not required on an overtime basis. Tours not used by the end of the fiscal year may be carried over for not more than six (6) months.

Section 2. Such officers and members of the Association as may be designated by the Association's Executive Board, shall be granted a total of twelve (12) days, in the aggregate, of leave without loss of pay to attend the annual convention of the Massachusetts Police Association. *OR MASSACHUSETTS COMMISSION OF POLICE.*

Section 3. Reasonable requests for leave time, without pay, shall be granted for Association meetings and conferences, at the discretion of the Chief of Police.

ARTICLE XI ASSOCIATION ACTIVITY PROTECTED

Except for the right to strike, which is hereby prohibited, all other lawful Association union activities are protected.

ARTICLE XII WAGES

Section 1. Compensation Schedule

	JULY 2007	JULY 2008	JULY 2009	JULY 2010
	Biweekly/annual	Biweekly/annual	Biweekly/annual	Biweekly/annual
PATROLMAN	2%	5%	3%	3%
STEP 1*	\$1,537.89/39,985.02	\$1,614.78/41,984.27	\$1,6633.22/43,243.80	\$1,713.12/44,541.11
STEP 2*	\$1,642.72/42,710.64	\$1,274.85/44,846.17	\$1,776.60/46,191.56	\$1,829.90/47,577.31
MAXIMUM	\$1,713.33/44,456.65	\$1,834.98/47,709.46	\$1,890.03/49,140.75	\$1,946.73/50,614.97
GRADE 14	\$1,802.78/46,872.16	\$1,892.91/49,215.76	\$1,949.70/50,692.24	\$2,008.19/52,213.00
GRADE 16	\$2,009.73/52,252.96	\$2,110.22/54,865.60	\$2,173.52/56,511.57	\$2,238.73/58,206.92
ARMORER	\$1,824.35/47,433.12	\$1,860.84/48,381.78	\$1,953.88/50,800.87	\$2,072.87/53,894.64
SERGEANT	\$2,009.73/52,252.96	\$2,110.22/54,865.60	\$2,173.52/56,511.57	\$2,238.73/58,206.92
LIEUTENANT	\$2,291.10/59,568.69	\$2,405.66/62,547.12	\$2,477.83/64,423.53	\$2,552.16/66,356.24

The effective date of the compensation schedule shall be the first payroll period of each fiscal year.

*The step increments for patrolmen are applicable to all patrolmen permanently appointed as a regular full-time patrolman on or after the date of execution of the 1986-1988 agreement. Such patrolman so employed shall be placed at Step 1 of the schedule, upon completion of two years of service, at that Maximum Step.

Section 2. Specialist Pay

- (A) A member of the Police Department assigned to photographic or identification work in said Department shall after completion of one year's service in such assignment, receive in addition to his annual salary as a Police Officer, the sum of six hundred dollars (\$600.00) a year to be paid to him as long as he is assigned to said photographic or fingerprint identification work.
- (B) A patrolman who is assigned the duties of Armorer shall receive two additional pay grades.
- (C) A patrolman who is assigned the duties of Parking Meter Repairman, shall receive three additional pay grades.
- (D) A member of the Police Department assigned the duties of Juvenile Safety Officer, shall be placed in Grade 16.
- (E) A member of the Police Department assigned the duties of canine patrol officer, shall receive, in addition to his regular compensation, the additional sum of six hundred dollars (\$600.00) annually for said duties and the sum of three hundred and fifty (\$350.00) annually for the maintenance and upkeep of said dog.

Section 3. Longevity

(A) All members of the Police Department shall receive career monetary awards to be computed as follows:

Five Years of full-time continuous payroll service	\$ 300.00
Ten Years of full-time continuous payroll service	\$ 500.00
Fifteen Years of full-time continuous payroll service	\$1,000.00
Twenty Years of full-time continuous payroll service	\$1,100.00
Twenty-Five Years of full-time continuous payroll service	\$1,500.00
Thirty Years of full-time continuous payroll service	\$ 2,500.00

(B) Any permanent member of the Police Department who has or will reach the 5th, 10th, 15th, 20th, 25th or 30th anniversary of his date of employment by the City in a calendar year shall be paid in a lump sum any respective longevity award due him on the regular pay dates nearest December 1st.

(C) Members of the Bargaining Unit appointed to the Department prior to January 1, 1970, upon reaching twenty (20) years of continuous service to the City of Peabody, shall receive an annual sum each of \$700. This sum shall be added to their regular annual salary for retirement purposes. Notwithstanding the foregoing provisions, such members, if also eligible for an receiving education incentive base salary increases pursuant to the provisions of General Laws, Chapter 41, Section 108L shall receive the higher of twenty-five years of service there-under, or said education incentive pay, but not both.

The annual expenditure under this section shall not exceed forty-two hundred dollars (\$4,200) if in the event that the number of employees entitled to this benefit exceeds thirteen (13) then by dividing the total amount \$4,200 by the number of said eligible employees. Said "Service Benefit" payment shall be made on the first payroll date in the month of December in each year.

(D) If an employee should retire on length of service such award is paid for that year, it shall be paid to him with his/her final check for that year.

(E) If an employee's termination is caused by death, such payment shall be made to his spouse

or beneficiary in accordance with the City's group life insurance policy.

(F) An employee who returns to full-time continuous payroll service after a service break not exceeding two (2) years will be deemed not to have broken service there under.

Section 4. Night Work Premium

There shall be pay differential between men/women of all rank, excluding the Chief, working days, and men/women of all rank excluding the Chief, working nights as follows: The men/women working on the third division (4 p.m. to 12 midnight) shall received a seven percent (7%) higher pay differential; the men/women working on the first division (12 midnight to 8 a.m.) shall receive and eight percent (8%) higher pay differential.

Section 5. Training Bonus

(A) All permanent full-time members of the Police Department who have graduated from or will graduate from the State Police Academy or any approved school of instruction for Police Officers shall be awarded a bonus of one hundred dollars (\$100) per annum to be paid upon successful completion of the course. This annual payment shall only apply to members of the Police Department in the employ of the City on or prior to December 31, 1971.

(B) A maximum of twelve (12) members of the department per year shall attend school.

(C) Not less than two (2) Sergeants shall attend Babson College Management Training Program annually, without loss of pay or benefits.

Section 6. Weapon Training

Effective July 1, 2008, the Department shall pay two installments of \$200 for training pay annually (in July and January to officers for weapon qualification training. In the event an officer fails to qualify during the initial training, the officer shall not be compensated for the time necessary until he/she successfully qualifies. The Department, however, shall continue to pay for the cost of ammunition and the trainer until the officer's successful completion of training. Effective July 1, 2009, the two installments for training pay shall be increased to \$250. Effective July 1, 2010, the two installments for training pay shall be increased to \$375.00.

Section 7. Expense Reimbursement.

Employees assigned to "CID" shall each received an annual sum of four hundred dollars (\$400) as expense reimbursement for out-of-pocket expenses incurred and/or paid by them in the course of their work, which \$400 expense reimbursement shall be paid to them on the first payday in June of each year.

Section 8: Defibrillator Pay.

As of July 1, 2002, all members of the bargaining unit who are or become certified as being defibrillator trained shall be compensated on an annual basis (i.e. July 1-June 30) with a stipend of five hundred dollars (\$500) in the event defibrillator pay is increased above \$500 for Peabody Firefighters negotiations will be reopened on this section. The initial defibrillator certified training shall be at no cost to the City, with re-certification training being conducted during regular training programs of the Department. Defibrillator pay shall be considered regular compensation for retirement purposes and shall be payable the fourth (4th) pay period in January of each year.

Section 9. Pay Day

Effective on or after the first payroll period of December 6, 2006 they shall be paid bi-weekly (every other week). Employees on the payroll as of the date bi-weekly pay commences shall receive one week of regular compensation in advance of the week worked. In recognition thereof, any such employee receiving an advance of pay, upon separation of employment, whether by retirement, resignation, dismissal, death or any other means, shall re-pay to the City, said week advancement of pay. The repayment shall be the same dollar amount as originally

advanced to the employee under this Section. All new employees hired on or after the first payroll period shall be paid bi-weekly (every other week) without any advance of pay

ARTICLE XIII PRIVATE JOB/DETAILS

A. All extra work details including work for the City shall be distributed fairly and equitably to all employees, regardless of rank, shall be posted weekly, and shall be averaged on a continuing monthly basis, subject, however, the following provisions of this article.

B. Private jobs/extra work details shall be paid in accordance with the following schedule:

1. Effective thirty (30) days after the date of execution of this agreement, the private jobs/detail rate shall be thirty-eight (\$38) per hour for inside and outside details of which two dollars (\$2.00) of said rate shall be a surcharge to be placed in the private detail fund to be used for the purposes as set forth in Section F and shall not be considered as compensation for work performed and, provide further, that work performed for Syms' details shall be paid at thirty-two dollars (\$32) per hour. In addition to the rate hereby established above, in the event that a police vehicle is requested for a road project, an additional ten dollars (\$10) per hour shall be charged for the use of said police vehicle.

2. On Thanksgiving Day, Christmas Eve, Christmas Day, New Year's Eve and New Year's Day said rate shall not exceed double time calculated on the basis of the maximum pay of a patrolman.

3. The rate of "emergency road work" jobs/details that are performed on Sunday and after nine o'clock in the evening on any other day shall be "double-time" calculated on the basis of the maximum pay of a patrolman. Excluded from this provision is "emergency road work" performed on behalf of the City, the payment of which is credited against the municipal budget, which rate shall remain at the time and one-half, calculated on the basis of the maximum pay of a patrolman.

4. All details shall be guaranteed a minimum of six (6) hours per detail if employee works between four (4) and six (6) hours. All details shall be guaranteed a minimum of eight (8) hours per detail if the employee works between six (6) and eight (8) hours.

5. Notwithstanding the foregoing provisions, details performed for Peabody School Department related functions, including but not limited to school student sponsored functions, sporting events, college nights, etc., shall be compensated at the rate of time and one-half (1 1/2) calculated on the basis of the maximum pay of a patrolman, with a minimum of four (4) hours such pay per detail.

C. On jobs of construction or destruction impeding the normal flow of traffic or the safety of the public, the service of a police officer shall be required as may be determined by the Chief. The City agrees that all police work traditionally performed on a paid detail basis shall be done by sworn Peabody Police Officers.

D. Special Rules

1. All details, except as set forth in subparagraph 9, will be assigned by seniority, utilizing the department's seniority list, on a continuous rotating basis, the seniority list will pick up where it stops the previous week.

2. Known details for any given detail week (Monday through Sunday) shall be assigned by 3:00 p.m. on the previous Friday and posed accordingly.

3. Employees assigned a detail on a Friday for the following week, who elect not to work such detail shall, no later than 4:00 p.m. on the Monday of such detail week, turn back their detail assignment to the detail officer, or to the Officer-In-Charge if the detail officer is unavailable, who shall record such turn back by an entry in a log book specifically designated for the purpose.

4. Detail opportunities called in to the Department following the Friday position, shall be assigned by use of the detail list referred to in Paragraph 1 above.

5. Employees shall be allowed to swap details assigned to them by 4 p.m. Monday of the detail week, in which event each employee so swapping will thereupon work, in such week,

the other employee's detail and vice-versa. Employees swapping detail shall not them be allowed to turn back their detail assignment as it otherwise permitted under subparagraph 3.

6. Employees who have accepted a detail opportunity, whether on the occasion of the Friday posting or thereafter prior to the next Friday position, and who elect not to work such detail, shall turn back the detail in accordance with the provision of subparagraph d above.

7. An acceptance of a detail (including a turn back of a detail) or a refusal of a detail shall be treated in the same manner, and charged to the employee involved.

8. The detail system shall be renewed quarterly, with all hours set back to zero at the end of each quarter.

E. General Rules

A. All employees shall be included for detail assignment unless they shall be included for detail assignment unless they shall signify in writing, from time to time, that they do not wish to receive detail assignments. If they so signify, they may also advise in writing the detail officer that they wish to included for such assignments, in which event details shall be fairly and equitably distributed to such employees from the date of such request.

B. All requests for details shall be referred to the Detail Officer in the absence of the Detail Officer, the Officer- In-Charge of the watch shall immediately assigned detail requests received during his watch to employees pursuant to the provisions of paragraph D above, shall forthwith enter said assignment upon the detail sheet and forward all information, including refusals, to the detail office.

C. Detail assignments, to the extent detail request have been referred to the Detail Officer prior thereto, shall be posted on Friday of each week for the following week.

D. All detail assignments shall be made by a detail officer assigned by the Chief, who shall be responsible for the fair and equitable distribution of details.

E. An employee who performs a paying detail not officially assigned by such Detail Officer and recorded and posted as required by the article, will not be protected by the provisions of General Law Chapter 41, Sections 100 and 111F (as amended).

F. 1. Detail distribution charts/postings/computer print-outs shall be kept by the Police Department and shall be made available to the Association for inspection and use upon request.

2. Detail Payments - The City will use its best efforts to make payment to employees who work details within twenty-one (21) days following the performance of the details; provided, however, the City shall guarantee to make payment to an employee for working a detail no later thirty-five (35) days following the performance of the detail as long as said employee has submitted a detail slip stating that the employee in fact performed the detail for which payment is requested. The parties agree to meet to review any matter relating to details at the request of either party.

G. Employees on a regularly scheduled vacation will be assigned detail opportunities unless they notify the Detail Officer of their desire not to work during their said vacation.

H. An employee may split a detail assignment of eight (8) hours into two (2) 4 hours details), but must contact the detail officer with a reasonable explanation for this request.

I. All details are voluntary. Employees accepting detail assignments, however, shall understand that details are extra-duty police work and that when working details, they shall be governed by the City's code and the Department's rules and regulations.

J. If an employee refuses a paid detail assignment, the refusal shall be counted as hours worked. Details accepted by an employee but turned back in for any reason before or during the 12-hour period prior to the detail, shall also be considered a detail refusal. If an employee is tardy for a detail, does not show up for the detail or leaves a detail early without permission, he/she shall be suspended from the detail list for 2 weeks, in the first instance, in any calendar year; on the second such instance, he/she shall be suspended from the detail list for one month. For any subsequent similar offense in the same calendar year, other disciplinary action up to an including a suspension from duty may be imposed.

K. Bargaining unit employees may not accept details from non-bargaining unit employees.

ARTICLE XIV COURT TIME

All members of the Department required to appear in district court shall be paid for such duty at their applicable time and one-half rate, with a minimum of three (3) hours pay for each such appearance on off-duty time. The present practice of non-appearance at pre-trial conferences shall continue.

Present practice as to the appearance of members of the department on off duty time in superior court shall continue.

Arresting officers shall appear in court on the day of arraignment in accordance with past practice.

ARTICLE XV CLOTHING ALLOWANCE ALL

Permanent full-time members of the police department shall receive an annual clothing allowance as follows:

Effective July 1, 2005 - \$700
Effective July 1, 2006 - \$750

Said clothing allowance shall be payable in accordance with past practice

ARTICLE XVI PERSONAL LEAVE

In lieu of "Veteran's Day" previously granted, each employee shall receive three (3) personal leave days annually with prior approval of the Chief or his designee said approval shall not be unreasonably withheld.

ARTICLE XVII BEREAVEMENT LEAVE

A. In the event of a death in the immediate family of a member of the Police Department or his spouse, that member shall be granted a minimum of four (4) calendar days off duty without loss of pay or job benefits, commencing the day after the date of death. In any event, said member shall not be required to return to duty until the day following the funeral.

B. In cases where additional times is needed because of unforeseen circumstances or in the case of a death of any other relative, such time may be granted by the Chief of Police.

C. In the event of the death of a grandparent of a member or of his spouse, said member shall be granted leave of one (1) tour of duty off, without loss of pay or job benefits, therefore.

ARTICLE XVIII CRUISER COVERAGE

The employee will strive to maintain, within its budgetary restrictions, its past practice of cruiser coverage as follows:

Practice of cruiser coverage as follows:

1 ST Shift	4 cruisers
2 ND Shift	6 cruisers
3 RD Shift	7 cruisers

Cruisers presently manned by two (2) patrolmen shall continue to be so manned.

It is further the goal of the City to strive to provide coverage as recommended by the IACP Survey of 1971-72. A Joint Labor Management Committee will be established to review said survey and to make recommendations to the Mayor as to the implementation of its provisions concerning cruiser coverage.

The provisions of this article shall not be subject to Step 4 of the grievance procedure.

As a matter of Side Agreement and not as a matter of the Collective Bargaining Agreement, the Employer will strive to maintain, within its budgetary restrictions a fifth(5th) area of patrol (cruiser) on the first shift.

ARTICLE XIX WORK SHIFTS, WORK WEEK, WORK SCHEDULE

Section 1. Scheduled work shifts, work week, etc.

The regular work week for employees shall consist of not more than forty (40) hours and work day (work shift or tour of duty) shall consist of not more than eight (8) consecutive hours, except for the one (1) hours lunch period for day men/women.

The starting and quitting times for the day and the two night tours of duty or work shifts shall be as follows:

8:00 a.m. - 4:00 p.m.
4:00 p.m. - 12:00 a.m.
12:00 a.m. - 8:00 a.m.

The starting and quitting times for the day and two night tours of duty or work shifts shall follow present practice, subject to the provisions of the foregoing paragraph.

Present policy and practice as to employees having lunch and dinner and taking relief shall continue in force and effect, subject to the following:

(A) Effective June 12, 1989 working days, and on the Police Department payroll as of said date, shall work and additional one-half (1/2) hour per day, and shall be paid overtime therefore, and take one-half (1/2) hour lunch period as follows

- (1) Each such employee who works three (3) regularly scheduled tours of duty or more each week (Sunday to Saturday) shall received two (2) hours of overtime pay weekly; each such employee who works less than three (3) regularly scheduled tours of duty in each week shall received one-half (1/2) of overtime weekly for each such tour of duty.

- (2) Each such employee shall receive a one-half (1/2) hour lunch period between the hours of 12 noon and 1:30 p.m.

(B) Employees hired after June 12, 1988 shall not, as a matter of contract right or as of past practice, be entitled to the aforesaid lunch time overtime

(C) Effective July 1, 2002, all employees working days shall be granted twenty (20) minutes for lunch, during which time they shall respond to calls and be on duty. Employees of the Bargaining Unit, when working days, and were on the Police Department payroll as of June 12, 1989, shall work an additional one-half (1/2) hour per day, beyond the regular eight (8) hours shift for which they shall be compensated at their overtime rate.

Section 2. Work Schedule, Day-Off Schedule of Employees

(A) All employees, except for those referred to in said subparagraph (b) shall be assigned to work schedule of four (4) days on and two (2) days off.

(B) Excepted from the regular "4" and "2" work schedule set forth in subparagraph (A) above shall be employees assigned as follows, each of whom shall work five (5) consecutive days on Monday through Friday, and receive two (2) consecutive days off, Saturday and Sunday each week.

- (1) Newly appointed patrolmen attending recruit training at a police
- (2) Employees attending school, training or courses
- (3) Research, Development and Training
- (4) Supervisor of Traffic plus two other positions
- (5) One employee assigned to Public Information
- (6) Chief of Detectives
- (7) Assistant Chief of Detectives
- (8) Supervisor of Domestic Violence
- (9) Dare Officer
- (10) School Safety Officer
- (11) Juvenile Officer
- (12) Supervisor of Records

Such employees so assigned shall be entitled to and shall receive, in addition to two (2) consecutive days off weekly each shall receive under the five (5) days work week above mentioned, seventeen and one-third (17 1/3) additional regular days off annually, so that each such employee so assigned shall receive the same number of days off annually as will employees working the regular "4 and 2" work schedule described in subparagraph (B) above. These seventeen and one-half third (17 1/3) additional regular days off shall be taken one (1) each three weeks, or otherwise in accordance with present practice.

ARTICLE XX SICK LEAVE

Section 1. Each employee shall be credited with sixteen (16) days of sick leave annually. An employee on injured leave under MGL Ch 41, S 111F shall accumulate sick leave during the period of his absence on injured leave.

Section 2. Employees shall be entitled to accumulate sick leave without limitation.

Section 3. Employees shall be granted sick leave for illness or non-occupational injury and for illness in the immediate family.

Section 4. Sick Leave/Physician Certificate

A. Effective September 7, 1995, an employee who is absent from duty because of illness or

injury for ten (10) days, in the aggregate, during each calendar year which is undocumented by a physician's certificate or hospital records (inpatient, out-patient or emergency room), shall be required to provide a physician's certificate or hospital record on the occasion of each succeeding day of absence during that calendar year. Notwithstanding the requirement contained in the preceding sentence, an employee, who is absent from duty because of illness or injury for four (4) consecutive work days, shall be required to provide a physician's certificate or a hospital record justifying the absence the day on which the employee is relieved from duty for illness or injury not to be counted as part of the four (4) consecutive days.

If an employee has given the Department a physician's certificate or hospital records documenting an absence on his/her part, then such absence(s) shall not be counted in determining whether the employee has been absent in excess of ten (10) days.

Because it is per se documents, the use of family sick leave by an employee where his/her spouse is hospitalized shall not be counted in determining the number of days an employee is absent during each calendar year.

Upon an employee being absent more than (ten) 10 undocumented days in each calendar year, a meeting shall be held by the Division or Bureau Commander with the affected employee and his/her Association Steward or Officer, to determine what assistance can be afforded the employee.

The requirement that a physician's certificate or hospital records be provided whereby an employee has been absent in each calendar year more than ten (10) undocumented days, may be waived, as to each such absence by the Chief of Police.

B. Home visits. After an employee has been absent more than seven (7) undocumented days, in the aggregate, in any calendar year on sick or injury leave, the Chief of Police, at his/her discretion, may direct that such employee be visited at his home/residence on the occasion of any succeeding absence or absences in that calendar year.

C. Holiday pay. Regardless of the number of sick days used in each calendar year, during the payroll periods from December 20 through January 4, if any employee uses a sick day or days on December 24, 25, 26, 31 or January 1 such use shall result in non-payment of holiday benefits within that payroll period in which the sick day(s) is used, unless the employee has been on sick-injured leave for thirty (30) or more calendar days prior to the Christmas or New Year's Holidays, or provide a physician's certificate or hospital record justifying the employee's said absence or sick leave.

D. Details/Overtime. An employee absent because of illness shall not be eligible for private jobs/details or overtime assignment for twenty-four (24) hours after conclusion of the last sick day.

E. Common sense. In the administration of the foregoing provisions, the Department shall, at all times, let common sense prevail.

Section 5. Reservation Of Rights. Nothing from this article will prohibit the Police Department from verifying the legitimacy of absence due to sick leave or prohibit the Department from counseling employees or imposing disciplinary sanctions for patterned absenteeism, feigned sickness or falsification of any report required.

A. There is hereby established a sick leave bank for all members of the Bargaining Unit.

B Said bank shall be administered by a "Sick Leave Committee: consisting of the Officers of the Union, which are the President, Vice-President, Secretary and Treasurer and in conformance with mutually agreed upon rules and regulations.

C. At the direction of the Sick Leave Committee, on January 1st of each year, each member of the Bargaining Unit shall contribute one day of their personal sick leave to the sick leave bank.

D. The Sick Leave Committee shall determine the eligibility for use of the bank and the amount of leave to be granted.

E. The decision of the Committee shall be final and not subject to the grievance and arbitration provisions of this contract.

Section 6. Discretionary Sick Leave. If an employee has exhausted all of his available sick leave, additional leave may be granted him in the discretion of the Chief of Police, with the Mayor's approval.

Section 7. An employee who retires, or in the event of his death, his estate shall receive payment for days accumulated unused sick leave each day to be calculated at fifty percent (50%) of the per diem in force at the time of retirement or death, up to one hundred (100) days. The per diem rate shall be as one-fifth (1/5) of such employees regular weekly compensation at the time of his retirement or the date of his death.

ARTICLE XXI SENIORITY

Section 1. Patrolman Seniority

Seniority of Patrolmen employees shall run from the date of their permanent original appointment in the continuous employment of the Those patrolmen so appointed on the same day shall have their relative seniority vis-à-vis each other determined on the basis of their date of reserve appointment.

Section 2. Superior Officer Seniority

Seniority of Sergeant and Lieutenant employees shall run from the date of their certification and promotion as such in the classified civil service. Those employees of the same rank so appointed on the same day shall have their relative seniority vis-à-vis each other determined in accordance with section 1:

SECTION 3. Vacancies

When a vacancy occurs within the Department, said vacancy shall be posted in a conspicuous place for a period of seven (7) calendar days. All interested employees shall submit his/her application for said position to the Chief prior to the close of the posting period. Within five (5) calendar days thereafter, the Chief shall fill the vacancy from those employees who have applied. In the event that the most senior applicant is not selected, the Chief shall notify, in writing, said unsuccessful applicant, giving the reasons of non-selection. If said senior applicant is dissatisfied with the reason given, he may utilize Steps 2 and 3 of the grievance procedure. The decision of the Mayor under Step 3 of the grievance procedure shall be final and binding upon the parties. In the event that there are no qualified applicants for the position, the Chief may fill said positions in accordance Section 4 hereof. Vacancies in the positions of Inspectors, Juvenile Officers and Prosecutors are excluded from the provisions of this section.

Section 4. Involuntary Transfers and Reassignments.

No employee within ranks shall be involuntarily transferred or reassigned without prior approval of the Chief, which approval shall not be unreasonably denied. Prior to said transfer or reassignment, the affected employee or employees shall receive written notice stating the reason or reasons for said transfer or reassignment. In the event that the affected employee is dissatisfied with the reason for said transfer or reassignment, he may utilize Steps 2 and 3 of the grievance procedure shall be final and binding upon the parties. For the purpose of this article transfer and reassignments shall include transfers between shifts and reassignments of walking,

traffic, cruiser, desk, wagon, supervisor and station commander assignments for shift or tour duty, but shall exclude inspectors, juvenile officers and prosecutors. In case of emergency, said transfers and reassignments shall not be subject to prior notice, but said notice shall be provided as soon thereafter as practicable.

ARTICLE XXII EDUCATION INCENTIVE PAY

Section 1. In accordance with the provisions of the G.L. Chapter 41, Section 108L, each employee shall receive additional compensation for educational semester credits and degrees earned in an educational institution accredited by the New England Association of Colleges and secondary schools or by the Board of Higher Education. Such police career incentive base salary increase shall be predicted on the accumulation of points earned in the following manner: One point for each semester hour credit earned toward a Baccalaureate or an Associate Degree; sixty points for an Associate Degree; one hundred and twenty points for a Baccalaureate Degree; and one hundred fifty points for a degree of Master of for a Degree in Law.

Base salary increases for credits so accumulated shall be granted in the following manner: A three percent increase for 10 points so accumulated, a six percent increase for forty points; a fifteen percent increase for sixty points; a twenty percent increase for one hundred and twenty points and thirty percent increase for one hundred and fifty points so accumulated.

Section 2. In the event that General Laws, Chapter 41, Section 108L shall be repealed or amended, employees shall continue to receive the education incentive pay and percentages they were/are entitled to and were/are receiving or may be entitled to receive in accordance with said Chapter 41, Section 108L had said Chapter 41, Section 108L not been repealed or amended and the City shall pay the entire amount thereof.

It is the intent of this section to guarantee 100% payment of the education incentive pay benefits notwithstanding any subsequent legislation which might affect Chapter 41, Section 108L or the City's reimbursement by the Commonwealth.

ARTICLE XXIII OUT OF GRADE PAY

When a Lieutenant Watch Commander is absent from a tour of duty, and an officer higher in rank than Sergeant is available to undertake the duties of Watch Commander, the Chief of Police, or his designee, has the managerial right discretion to assign the duties of the Watch Commander as he/she deems appropriate, having the right to call-in a Captain or Lieutenant on an overtime basis or to assign an on-duty Sergeant to the Watch Commander duties, with Sergeant being paid at the rate of pay of a Lieutenant. The Chief of Police, or his designee, must however, make an assignment of the duties of the absent Watch Commander according to the options set forth above should no assignment be made, and should the duties of Watch Commander fall to a Sergeant OIC who has filled the role of the absent Lieutenant. Where the Chief of Police or his designee, assigns a Lieutenant to work out of grade performing the duties of a Captain, the Lieutenant shall be paid at the rate of pay of a Captain.

ARTICLE XXIV STABILITY OF AGREEMENT

The failure of the City or the Association or any other covered employees to insist, in any one or more situations, upon performance of any of the terms or provisions of this agreement shall not be considered as a waiver of relinquishment of the right of the City or the Association, or of any such employees to the future performance of any such term or provision and the obligations of the Association and the City or such employees for such future performance shall continue in full force or effect.

ARTICLE XXV ACCREDITATION

The City of Peabody desires to seek the Accreditation of the City's Police Department. Such a process is recommended as a means of assessment and evaluation of the Department in order to ensure the Department meets the highest professional standards. The Union will cooperate in the process with the City, subject to the bargaining obligation of the City under Chapter 150E, and the subject to the terms and provisions of the collective bargaining agreement of the parties. The City agrees to fund the cost of the accreditation.

ARTICLE XXVI LABOR-MANAGEMENT MEETINGS

The City and the Association agree that during the life of this agreement, representatives from each side, including the Mayor, shall meet regularly preferably on a monthly basis, to continue to discuss labor-management issues affecting the parties. Prior to any meeting, the parties shall endeavor to provide each other with such advance notice as is reasonable under the circumstances concerning matters intended to be discussed.

ARTICLE XXVII MISCELLANEOUS

Section 1. Should any provision of this agreement be found in violation of any federal or state law or civil service rule, not superseded by this agreement, by a court or competent jurisdiction, all other provisions of this agreement shall negotiate immediately for a satisfactory replacement for such provisions.

Section 2. Employee benefits privileges or working conditions existing prior to this agreement not specifically covered by this agreement shall remain in full force and effect.

Section 3. Effective July 1, 1978, the City shall pay the annual gun permit for all employees holding or applying for a gun permit.

Section 4. The City shall pay the reasonable expenses, not exceeding two thousand dollars, of funeral and burial of any police officer who while in the performance of his duties and as the result of an assault on his person is killed or sustains injuries which result in his death, in accordance with Chapter 41, Section 100G.

Section 5. The City agrees to provide each employee covered by this agreement with accidental death insurance equivalent to twice his or her annual salary and to pay ninety-nine percent (99%) of the premium therefore, in accordance with G.L. Chapter 32B, Section 11D.

Section 6. The City agrees to indemnify employees covered by this agreement for expenses or damages incurred in the settlement or defense of an action brought against said employee(s) because of damage caused by a dog which said employee(s) were caring for or maintaining in

connection with their official duties, in accordance with provisions of G.L. Chapter 41, Section 100H.

Section 7. The City shall provide each employee a physical examination by a medical practitioner once annually, at its sole expense

Section 8. Except as authorized by the Chief of Police, employees shall not convert any leave credit from one type of leave to another (i.e. time due to vacation leave, etc.) nor shall employees transfer any type of leave credit to an for the benefit of another employee.

Section 9. The City will institute and administer, at its cost, a hepatitis inoculation program as to which all members of the bargaining unit shall participate, unless medically excused.

Section 10. Performance Evaluation Committee – To consist of three (3) City designees, one of whom shall be the Chief Of Police, and three (3) Association designees, is hereby established to study and make report to the parties concerning a performance evaluation program for the implementation of a performance evaluation system, including its form, method, general criteria, and appeal procedures, and for what purpose such program shall be utilized. If the parties have not agreed to such performance evaluation program by July 15, 1997, then the parties designate Prof. David Twomey, of the Boston College Carroll School, as a neutral to resolve the dispute. Prof. Twomey, shall receive submissions from the parties in such regard, hear testimony and take evidence in such regard, with the parties reserving the right to submit oral or written argument in support of their respective positions, Prof. Twomey shall have the authority to mediate this issue and/or to make a decision which shall be final and binding upon the parties.

Section 11. Notwithstanding any other provision of this agreement effective upon execution of this memorandum of agreement, the Chief of Police may require each member of the Bargaining Unit to report for duty for two (2) hours once in each fiscal year commencing fiscal year 1997, without the payment of any compensation therefore, to attend a meeting at the Police Department. Unused hours in any fiscal year shall not be carried forward into a subsequent fiscal year.

ARTICLE XXVIII DURATION AND EFFECTIVE DATE AGREEMENT

The terms and provisions of this agreement shall be effective July 1, 2008 or at such later date as to certain provisions, thereof, as may be specifically referred to in this agreement

This agreement shall remain in full force and effect until 11:59 p.m. on June 30, 2011. On or after September 1, 2010 either party may submit its proposals for a new agreement to be effective on the termination of this agreement, and the parties shall proceed forthwith to bargain collectively with respect thereto.

If a successor agreement has not been executed on or before June 30, 2011, this agreement shall continue in force and effect until a successor agreement is executed .

As a matter of side agreement and not as a matter of collective bargaining agreements, but as part of the total agreement, the parties acknowledge that they have met and have reached agreement as to Rule 99-01 entitled "Licensed Premises Inspection/Paid Details" and it accompanying policy statement, all attached hereto. In addition thereto, the Association agrees that it will withdraw all litigation, whether before the Massachusetts Labor Relations Commission or other forum, relating to the performance of private details at liquor establishments.

Executed this 2nd day of October 2008
WITNESS our hands and seals this 2nd day of October 2008

City of Peabody:

MCOP

For the Peabody Police
Benevolent Association ,
Local 351, AFL-CIO:

Michael J. Bonfanti
Mayor

Manuel Costa
President

ARTICLE XXIX DRUG TESTING

Drug testing as set forth in Attachment A to this Memorandum Agreement

RULES AND REGULATIONS OF POLICE DEPARTMENT SICK LEAVE BANK

1. Any member who has exhausted his sick leave and desires additional sick leave must make written application to the Sick Leave Committee. As part of his application the employee must submit medical documentation setting forth the nature of his illness and the expected duration of his continued absence.
2. Sick leave shall be for the use of employees who suffer serious and extended non-occupation illness or injury.
3. Upon the determination of the Sick Leave Committee that an employee does meet the requirements of paragraphs 1 and 2 above, the Committee may grant up to thirty (30) days sick leave and if at the conclusion of said period, the employee remains disabled as a result of said injury or illness, then said employee shall be examined by a City physician prior to the granting of additional leave. In no instance shall the Committee grant more than thirty (30) days of sick leave without the occurrence of the City physician.

DETAIL TRIPARTITE

The Detail Officer shall consist of a superior officer assigned by the Chief of Police, one employee who is mutually agreed upon by the Chief of Police and the Association's Executive Board, and an Association Executive Board member designated by the Chief of Police.

Effective within 30 days of the signing of an agreement the following shall be City Policy:

Police details, at establishments licensed for on premise consumption, shall not be allowed at adult entertainment establishments or at establishments whose primary purpose is selling alcohol therein.

Police Details may be allowed at restaurants, hotels, sporting events as solely determined by the Chief of Police (see Rule 99-01 - Sec 5 - D).

Further that certain other details where an officer's presence may be required and alcohol is served as a

secondary issue or in conjunction with a special event, dance, or celebration, some examples including:

weddings
Millennium celebrations
fundraising dances
functions for civic, religious, cultural, educational, fraternal
or non-profit organizations wherein alcohol is served as a secondary issue
or in conjunction with a valid one-day license issued by the Liquor Licensing Board

All such details shall be determined solely by the Chief of Police and such special rules as he/she may designate shall be proper on a case by case basis. Further that there shall be strict compliance with the attached Rules and Regulations.

LICENSED PREMISES INSPECTION/ PAID DETAILS RULE 99-01

This Rule establishes guidelines and procedures for the conduct of Police Officers performing paid details in licensed premises and adds to and amends all current Rules and Regulations, Orders, Memorandums and Directives. Also, this Rule establishes Departmental policy relative to the manner in which Peabody Police Officers report violations of the Laws of the Commonwealth and the Rules and Regulations of the Peabody Licensing Board (hereafter referred to as the "Licensing Board").

Section 1. GENERAL CONSIDERATIONS:

As agents of the Licensing Authorities, Officers may enter upon and inspect licensed premises (see M.G.L. c. 138 § 63; c. 140 § 21E; c. 140 § 210). However, in the absence of a search warrant, officers are prohibited from using force to gain entry. Any person who hinders, delays or refuses to admit an Officer in the performance of his duty is committing a criminal offense (M.G.L. c. 138 § 63A). Any such incident shall be reported to the Licensing Board and Licensing Division in accordance with this order and within department policy (all reports forwarded to Supervisory Licensing Officer)

Section 2. POLICY:

All Police Officers acting in the Capacity of agents of Licensing Authorities must concern themselves with all crimes and violations of Licensing rules that are committed WITHIN or ABUTTING license premises. Serious assaults, unlawful possession or use of weapons, sale or possession of controlled substances and receiving stolen property (to mention just a few examples) which take place on or abutting the premises are to be brought to the attention of the Licensing Authorities. The following selected rules and regulations, the terms and conditions of which are applicable to licensed premises, if violated, constitute a serious threat to public safety as well as interfering with and disturbing the public peace. They are:

1. There shall be no disorder, indecency, prostitution, lewdness or illegal gambling on or abutting the licensed premises.
2. There shall be no overcrowding, blocked aisles or obstructed fire exits. No increase in the capacity of the licensed premises will be valid unless a petition is duly filed by the licensee and approved by the appropriate Licensing Authority.

PLEASE NOTE THE CLEAR AND PRESENT DANGER FOR THE PUBLIC IN THE OVERCROWDING OF LICENSED PREMISES. This condition places a grave responsibility on all Police Officers in the Department to strictly monitor such conditions and to vigorously enforce violations of such regulations.

3. With the exception of liquor sold in packaged goods stores, all alcoholic beverages sold in licensed premises must be opened and consumed on the premises. (Patrons and/or employees are not allowed to enter or leave the premises with drinks or containers of alcoholic beverages.)
4. Officers are also to concern themselves with any other violations of the alcoholic beverage laws which may come to their attention.
5. In any circumstances where a Licensed Premises Violation is also a criminal violation, Police Officers shall pursue both administrative and criminal complaints (e.g., overcrowding, sale to minors, et al). Such criminal matters shall precede any Administrative action

Section 3. PROCEDURES:

In conformance with Rules and Regulations, all sworn personnel are required to be knowledgeable of conditions in and around licensed premises. Accordingly, all Supervisors shall make periodic inspections and all sworn personnel on duty shall take notice of all licensed premises on their assigned area and report all violations. While it is the policy of this Department that licensed premises inspections shall be conducted by Supervising Licensing Detective, uniformed Police Officers must be alert to violations which they may encounter during the course of their normal duties.

All personnel will adhere to the following procedures when entering a licensed premise:

- A. Personnel, while in the performance of duty, who enter a Licensed Premises will notify the desk that they are entering a licensed premises and state the location. The Watch Commander shall be required to make a log entry (Radio #) in the computer noting the time in and out.
- B. Radio Calls- Officers responding to a radio call will notify the Patrol Supervisor, via the Operations Division, if the location of a call is a licensed premises. They shall inform the Operations Division of the business name and exact address of the premises in question.
- C. Inspections-Supervisors or Detectives who conduct a licensed premises inspection will notify the Watch Commander that he will be inspecting licensed premises immediately prior to entering the premise, stating the address and the appropriate radio code for a licensed premises inspection, whenever possible.
- D. Investigations - Personnel who enter a licensed premises during the course of an investigation are not required to make a radio announcement. However, they shall record the name and address of the licensed premises on their daily activity log and include the fact that they were in a licensed premises in their report subsequent to the investigation.

Section 4. VIOLATION INSIDE OR ABUTTING A LICENSED PREMISES:

Whenever an Officer becomes aware of a violation INSIDE or ABUTTING a licensed premise, the following action will be taken:

- A. Notify Operations of a licensed premises violation and request that a Patrol Supervisor be dispatched to the scene..
- B. If the VIOLATION is found, an Incident Report (PPD Form) describing the facts and circumstances of what transpired inside or abutting the licensed premises must be completed by the Officer who observed the violation or responded to the incident. Additionally, a special stamp stating "Licensed Premises Violation" must be applied to the upper left hand corner and Box 83 of the 1.1 (or written in by hand, if no such stamp is available).

- C. Supplement Incident Report will be made out by a Supervisor or a Detective along with an officer's report to be forwarded to the Licensing Supervisor.
- D. Distribution of the Incident Report: When a violation is found, distribution will be made as follows: original to Supervisor Licensing Officer, a copy to Records, a copy to the Chief and a copy to the Area Commander.
- E. When no violation is found, an Incident Report shall be written indicating that no violation was found.

Section 5. GENERAL RESPONSIBILITIES OF POLICE OFFICER PERFORMING PAID DETAILS AT LICENSED PREMISES:

- A. Police Officers are first and foremost employees of the Peabody Police Department. The fact that a business is providing compensation to the City of Peabody for the services of the Officer shall have no relevance in the performance of official duties. Officers are primarily responsible for enforcing the laws of the Commonwealth, City Ordinances, insuring compliance with rules and regulation of Licensing Authorities and protecting the safety of the public. They shall not act in any other capacity, such as checking I.D. cards or acting as doormen or ticket takers for the management.
- B. Except for paid details where a Superior Officer is also assigned, no Officer will be assigned to perform more than two paid details at the same licensed premises during any calendar month.
- C. No Officer shall be assigned or shall accept a paid detail at a licensed premises if his scheduled tour of duty prohibits him from being present at the detail location for a minimum of four (4) hours.
- D. Officers performing paid details at licensed premises will remain at the detail location for the full duration of the detail

For the purposes of Section 5B, 5C, and 5D of this rule, a Licensed Premises shall be defined a "a premises where the primary business is the sale or distribution of alcoholic beverages for on premises consumption," It does not include sporting or entertainment businesses, restaurants and hotels where the sale or distribution of alcoholic beverages is the secondary business (e.g., Marriott, Holiday Inn. Capones, 99, Golf Course, Kappy's).
- E. Any violation of laws, licensing regulations or conflicts involving management and police personnel at licensed premised details shall require an immediate on-air request for a Patrol Supervisor.
- F. All Officers performing paid details a licensed premises will do so in full uniform, unless there is permission from the Chief of Police to do otherwise.
- G. Police Officers performing paid details at licensed premises are responsible for both the inside and outside condition of the premises.
- H. The standard rate of compensation for Officers performing paid details is established by the City of Peabody pursuant to the collective agreements and is not subject to any variation.
- I. Officers shall not accept cash as a legitimate payment for a detail. The only acceptable form of payment for a detail is a City of Peabody payroll check which is made out the

Officer.

- J. Pursuant to Rules and Regulations of the Peabody Police Department, Officers shall not solicit, see or accept any gift or gratuity, including food, drink or admission to public transportation or public amusements for themselves or others, from any individual, merchant or business establishment, when it can be construed to involve their positions as an employee of the Peabody Police Department. .
- K. Pursuant to M.G. L. c. 268A; § 2(a) and (b), any offer of any present or future consideration in an attempt to influence a municipal employee or any such act by a municipal employee in order to obtain any such consideration is a three (3) year felony.

Section 6. Responsibility of Supervisory Personnel – Patrol Supervisor:

The Patrol Supervisor shall respond to all requests for assistance or notices of violations occurring at licensed premises and shall be responsible for ensuring all incident reports are completed and forwarded to the Licensing Detective where applicable in accordance to this rule. Furthermore, Supervisors will:

- A. Ensure that details performed at licensed premises are conducted in accordance with stated Department policy and pursuant to the Laws of the Commonwealth, City Ordinances and the Rules and Regulations of the Licensing Authorities.
- B. Fully and correctly complete a supplement report of the Supervisor's actions at the scene for each premises he inspects or responds to an incident occurring at.
- C. Make periodic inspections of detail officers at licensed premises as per Department Regulations.
- D. Ensure that licensed premises are operated in an orderly fashion and not so as to constitute a public nuisance.
- E. Forward all copies of reports relative to the licensed premises to Supervisory Licensing Detective.

Section 7. Commanding Officer:

It will be the responsibility of the Licensing Detective to establish a file for all licensed premises where Inspection Notices have been issued and be certain that all Licensed Premises Inspections are forwarded to the appropriate Boards through the Chief.

The Officer In Charge of the Detective Division shall:

- A. Issue Licensed Premises Inspection Notice books (PPD) to Supervisors, Detectives and Police Officers he so designates.
- B. Ensure that Licensed Premises Inspection sheets (Peabody Police Form) are completed and that all forms are accounted for. Completed audit forms shall be forwarded to the Auditing and Review Divisions, OII, and then to the Licensing Unit for safekeeping.

Section 8. Auditing and Review Division:

The Auditing and Review Division shall conduct annual inspections of all Area files relative to Licensed Premises Inspection Notices to insure compliance with Department policy and procedures.

Section 9. Public Nuisance

Whenever a pattern of incidents develop to the degree that the Licensed Premises appears to be operating as a public nuisance, the OIC/Watch Commander will forward a complete report to the Police Chief and the Peabody Licensing Detective who shall forward a copy of all such reports to the Licensing Board and/or Licensing Division, whichever is appropriate.

Case law has established that there is a legal precedent for documenting incidents and securing evidence to support a public nuisance complaint. It is necessary to provide proper documentation, based on the observations of the Police Department; that a pattern of incidents has been established over a period of time which should support a public nuisance complaint. Incidents which present problems for residents in neighborhoods both outside and in the vicinity of such establishments are as follows:

- Controlled substance offenses
- Disorderly conduct
- Excessive noise
- Public drinking of alcoholic beverages
- Accosting and annoying residents
- Soliciting
- Assaults
- Obstructing/impeding pedestrian and vehicular traffic

The above is not complete, however, it is to be used as a guideline in documenting certain incidents which affect the peace and tranquility of a neighborhood.

ATTACHMENT A: DRUG TESTING

Section 1. Purposes for Drug Testing

The following drug testing program shall apply to members of the bargaining unit for purposes of reasonable suspicion, random testing, promotions, long term absences and post-accidents as outlined below. The testing components set forth herein will not be instituted until this program has been in effect for ninety (90) days. Prior to the implementation of this program, all employees shall receive training regarding the implementation of this program. All such trainings will occur on Department time. All drug testing of employees shall be conducted on Department time. In the event that testing of an employee cannot be done on regular duty, the employee shall be compensated overtime pay in accordance with the collective bargaining agreement.

A. Reasonable Suspicion

Reasonable suspicion is a belief based on objective facts sufficient to lead a reasonable prudent person to suspect that an employee is using or is under the influence of illicit drugs. Reasonable suspicion exists when facts, which appear reliable, are known to department personnel and is of such weight and persuasiveness to make the department personnel, based on his/her judgment and experience, to reasonably suspect an employee is using or under the influence of illicit drugs. If an officer has evidence to question a finding of reasonable suspicion, he or she may present that evidence to the Chief and it will be fairly considered before the City decides whether to test for drugs. In the instance in which the Chief is unavailable such evidence will be presented to an individual designated by the Chief.

Drug testing due to reasonable suspicion shall be done by hair sample in accordance with the procedures set forth in this agreement. When ordered to submit a hair sample for drug related analysis under the Reasonable Suspicion Clause, the employee shall immediately comply. At the time the employee is ordered to submit a sample, s/he shall be given a copy of this policy.

The employee may invoke the rights stated in Section 2(D) of this Article regarding an Independent Test.

B. Random Testing

All bargaining unit members shall be subject to unannounced random drug testing, to be conducted in accordance with procedures set forth in this agreement. In those instances in which

an employee is out of work when he/she is subject to the random selection for drug testing he/she shall not be tested until his/her return to work.

C. Promotions

Employees who seek promotion shall be required to submit to a drug test in accordance with the procedures set forth in this agreement upon a conditional offer of employment. A negative test shall be a condition of such promotion. Employees may refuse to submit to such a drug test without penalty or risk of disciplinary action; however, that will remove them for consideration for such promotion.

D. Long Term Absences

Employees returning to duty following an absence of ninety (90) or more consecutive calendar days shall be required to submit to a drug test in accordance with the procedures set forth in this agreement.

E. Post-Accident

Employees involved in a motor vehicle accident, including motorcycle or bike accident shall be required to submit to a urine drug test if found to be at fault.

Section 2. Procedures for Drug Testing

All drug testing shall require that a member submit to substance screening by a hair drug test which shall be administered by a laboratory certified as a qualified hair testing laboratory by the College of American Pathologist (CAP). Such laboratory must employ screening test methods cleared by the U.S. Food and Drug Administration (FDA) including the ability to distinguish drug use from drug exposure. Such laboratory is to be selected by mutual agreement between the parties. The laboratory selected to conduct the analysis must be experienced and capable of quality control, documentation, chain of custody, technical expertise and demonstrated proficiency in radioimmunoassay testing and confirmatory testing. The laboratory will have clear guidelines for establishing chain of custody, linking the hair sample to the donor, turn around time, and guaranteeing a sufficient quantity for analysis. The test will employ one or more types of immunoassay (IA) screens, confirmed by gas chromatography and mass spectrometry (GC/MS), liquid chromatography/mass spectrometry/mass spectrometry (LC/MS/MS) or gas chromatograph/mass spectrometry (GC/MS/MS). The City shall ensure that hair samples will be collected only at an authorized facility and by trained personnel

A. Test Cutoffs

The test will screen for the following drugs, with the following screen and confirmation cutoffs:

	Screen Cutoff picograms (pg)/milligrams (mg)	Confirmation Cutoff picograms (pg)/milligrams (mg)
Amphetamines	300 pg/mg	300 pg/mg
Cocaine	300 pg/mg	300 pg/mg

Opiates	500 pg/mg	500 pg/mg
PCP	300 pg/mg	300 pg/mg
Marijuana	1 pg/mg	1pg/mg

B. Medical Review Process

A positive test result does not automatically identify an employee as having used drugs in violation of this article. Any positive test result shall be reviewed confidentially by a Medical Review Officer (MRO) designated by the parties. The MRO shall be a licensed physician with knowledge of substance abuse disorders. The MRO shall examine alternate medical explanations for any positive test result. This may include conducting a medical interview and review of the employee's medical history, or review of any other relevant biomedical factors. The MRO shall review all medical records made available by the tested employee when a confirmed positive test could have resulted from legally prescribed or over-the-counter medication or from medical procedures. Prior to making a final decision to verify a positive test result for any employee, the MRO shall give the employee an opportunity to discuss the test result with him/her. The MRO shall contact the employee directly, on a confidential basis, to determine whether the employee to discuss the test result. Should any question arise as to accuracy or validity of a positive test result, the MRO is authorized to order a reanalysis of the original sample. The MRO shall not disclose to anyone any medical information provided by the employee to the MRO as part of the testing verification process. If, after concluding the verification process, the MRO determines that an employee's test was positive, the MRO shall only inform the Chief of Police of the positive result. After verification of a positive result from the MRO, the Chief of Police may inform the Human Resource Director. City contracts with laboratories shall require that the laboratory maintain personnel test records in confidence. Any employee who is the subject of a drug test conducted under this article shall, upon written request to the City, have access to records relating to the testing of the sample.

C. Confidentiality Statement

At the time an employee provides a hair sample, the employee shall also provide a confidential written statement as to whether the employee is using any prescription drugs or over-the-counter medications, or has undergone any recent medical procedure. The confidentiality statement shall be submitted to the MRO. The confidentiality statement shall be retained by the MRO and shall be expunged from all files upon verification of a negative test result. The City may access an employee's confidentiality statement only upon the confirmation of a positive test result. When in possession of any confidentiality statement described above, the City shall maintain such statements with the strictest confidence and shall expunge such records from its files upon conclusion that the officer ultimately tested negative.

D. Testing Process

The testing shall consist of an initial screening test, and, if that is positive, a secondary confirmation test in accordance with the procedures set forth in this agreement. If both the initial screen test and the secondary confirmation test are positive, the employee may elect to obtain an independent test within 5 days of receiving the results from the employer. Said independent test shall test for the same substances as the initial and secondary confirmation tests by the employer and must test for the presence of such substances at the Screen Cut Off and Confirmation Cut Off levels as stated in this Article. Prior to initiating an independent test, it is the employee's responsibility to show that the independent test complied with the requirements of this Article. Said results must be submitted to the employer within forty -eight hours of receiving the results.

If the independent test does not conform to the Screen Cut Off level and Confirmation Cut Off level or does not test for the stated substances in this article, then the independent test shall be null and void and will have no effect. If both the initial screen test and the secondary confirmation test of the employee's hair sample are positive, but the employee's independent test is negative then the result will be deemed negative. In such instances the employee shall submit to testing in the next round of testing. If the employee tests positive or negative in the subsequent round of testing then that result will be outcome determinative. If the initial screen test, secondary confirmation test and independent test are positive, then, unless the employee can prove the legal use of prescriptions or over-the-counter medications to explain the positive result, the employee shall enroll in and successfully complete the employee assistance program and he/she shall be subject to disciplinary action. Such disciplinary action, however, shall not result in termination in any instance of first violation. If the failure is a second or subsequent violation, the employee may be subject to additional mandatory rehabilitation and/or disciplinary action up to and including termination according to the just cause standard as defined in the agreement. The original random drug testing of hair specimens shall be at the sole expense of the City. In the event the employee chooses to take an independent test after a positive result the City will pay the cost in the event the independent test result is negative. Further, if the employee takes an independent test and the test is positive the employee shall bear the full cost of the independent test. In addition, if employee does not disclose said results to the employer the test shall be deemed null and void and the original positive result shall remain in full effect and the employee shall bear the full cost of the independent test.

Section 3. Grievance Rights

The terms, conditions and application of this drug-testing program shall be subject to the grievance and arbitration process as set forth in the collective bargaining agreement.

2007 – 2008
MEMORANDUM OF AGREEMENT
BETWEEN
THE CITY OF PEABODY
AND
THE PEABODY POLICE BENEVOLENT ASSOCIATION,
MASSACHUSETTS COALITION OF POLICE, LOCAL 351, AFL-CIO

The City of Peabody ("City") and the Peabody Police Benevolent Association, Massachusetts Coalition of Police, Local 351, AFL-CIO ("Union") hereby agree to extend their 2004-2007 collective bargaining agreement through June 30, 2008, except as modified by this Memorandum of Agreement as follows:

1. Article XVIII, Duration and Effective Date Agreement

Amend to be effective July 1, 2007 to June 30, 2008.

2. Article XII, Wages , Section 1, Compensation Schedule

Amend to reflect an across the board two percent (2%) wage increase over the rates in effect as of June 30, 2007, retroactive to the first payroll of July, 2007.

3. Ratification

This Memorandum of Agreement is subject to ratification by the Union membership.

Executed this 22^d day of OCTOBER 2008.

For the City of Peabody:

Michael J. Bonfanti
Michael J. Bonfanti
Mayor

For the Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO:

Manuel Costa
Manuel Costa
President

**2008-2011
MEMORANDUM OF AGREEMENT
BETWEEN
THE CITY OF PEABODY
AND
THE PEABODY POLICE BENEVOLENT ASSOCIATION
MASSACHUSETTS COALITION OF POLICE, LOCAL 351, AFL-CIO**

The City of Peabody ("City") and the Peabody Police Benevolent Association, Massachusetts Coalition of Police, Local 351, AFL-CIO ("Union") hereby agree to extend their 2004-2007 collective bargaining agreement (as revised by their 2007-2008 Memorandum of Agreement) through June 30, 2011, except as modified by this Memorandum of Agreement as follows:

1. Article XVIII, Duration and Effective Date Agreement

Amend to be effective July 1, 2008 to June 30, 2011.

2. Article XII, Wages, Section 1, Compensation Schedule

Amend to reflect the following across the board wage increases:

Five percent (5%) retroactive to July, 2008;

Three percent (3%) effective July, 2009;

Three percent (3%) effective July, 2010.

The effective date of each wage increase shall be the first payroll of each fiscal year.

3. Article XII, Wages, Section 3, Longevity (a)

Amend to reflect the following changes in the longevity schedule

effective on the execution of this Memorandum of Agreement.

15 years – Increase \$700 to \$1000

20 years – Increase \$800 to \$1100

4. Article XII, Wages, Section 6, Weapon Training

Amend Section 6 to read as follows:

“Effective July 1, 2008, the Department shall pay two installments of \$200 for training pay annually (in July and January) to officers for weapon qualification training. In the event an officer fails to qualify during the initial training, the officer shall not be compensated for the time necessary until he/she successfully qualifies. The Department, however, shall continue to pay for the cost of ammunition and the trainer until the officer’s successful completion of training. Effective July 1, 2009, the two installments for training pay shall be increased to \$250. Effective July 1, 2010, the two installments for training pay shall be increased to \$375.

5. Article V, Paid Holidays

Amend to add September 11 as a paid holiday.

6. Article XX, Sick Leave, C

Amend holiday pay restriction on use of sick day to delete January 2 and add December 31.

7. Article VI, Blue Cross/Blue Shield

Amend to increase the employee contribution to the premium rate of the Blue Cross-Blue Shield Plans or equivalent coverage from ten percent (10%) to fifteen percent (15%), with the City of Peabody decreasing its contribution to the premium rate from ninety percent (90%) to eighty-five percent (85%) effective January 1, 2009.

8. Article VI, Blue Cross/Blue Shield

Amend to change the co-pay charges applicable to the health insurance plans effective July 1, 2009 as follows:

Office visits – from \$5 to \$10 for the HMO Blue plan (with office visits for the Blue Care Elect plan to remain the same at \$15);
Emergency room – from \$25 to \$50 for both plans;
Retail drug prescriptions – from \$5/\$10 to \$10/\$15/\$30 for both plans;
Mail order drug prescriptions – from \$10/\$20/\$30 to \$20/\$40/\$70 for both plans.

9. Article XIII, Private Jobs/Details, C

Amend to add the following sentence:

"In the event the Chief of Police determines that a detail is required, only sworn uniformed police officers shall work said detail."

10. New Article, Drug Testing

Add new article for Drug Testing as set forth in Attachment A to this Memorandum of Agreement.

11. Ratification

This Memorandum of Agreement is subject ratification by the Union membership.

Executed this 2nd day of October 2008.

For the City of Peabody:

Michael J. Bonfanti
Michael J. Bonfanti
Mayor

For the Peabody Police
Benevolent Association, MCOP
Local 351, AFL-CIO:

Manuel Costa
Manuel Costa
President

Evenings 7%
Nights 8%

Rates 2009				Rates 2010				Rates 2011			
Rate 1	Rate 2	Rate 3		Rate 1	Rate 2	Rate 3		Rate 1	Rate 2	Rate 3	
	7%	8%			7%	8%			7%	8%	
20.18	21.60	21.80		20.79	22.25	22.45		21.4140	22.9130	23.1271	
21.56	23.07	23.28		22.21	23.76	23.98		22.8737	24.4749	24.7036	
22.94	24.54	24.77		23.63	25.28	25.52		24.3341	26.0375	26.2808	
21.60	23.11	23.33		22.25	23.80	24.03		22.9132	24.5171	24.7463	
23.07	24.69	24.92		23.76	25.43	25.66		24.4752	26.1884	26.4332	
24.54	26.26	26.51		25.28	27.05	27.30		26.0375	27.8601	28.1205	
21.80	23.33	23.54		22.45	24.03	24.25		23.1272	24.7481	24.9774	
23.29	24.92	25.15		23.98	25.66	25.90		24.7036	26.4329	26.6799	
24.77	26.51	26.75		25.52	27.30	27.56		26.2807	28.1204	28.3632	
26.38	28.22	28.48		27.17	29.07	29.34		27.9841	29.9430	30.2228	
23.86	25.32	25.55		24.37	26.08	26.32		25.1024	26.8596	27.1108	
24.42	26.13	26.38		25.16	26.92	27.17		25.9109	27.7245	27.9838	
26.38	28.22	28.48		27.17	29.07	29.34		27.9841	29.9430	30.2228	
28.22	30.20	30.48		29.07	31.11	31.40		29.9431	32.0391	32.3385	
28.49	30.48	30.77		29.34	31.40	31.69		30.2227	32.3383	32.6405	
30.07	32.18	32.48		30.97	33.14	33.45		31.9020	34.1352	34.4542	
32.48	34.75	35.07		33.45	35.79	36.13		34.4541	36.8658	37.2104	
32.18	34.43	34.75		33.14	35.46	35.79		34.1353	36.5248	36.8661	

2011-2012
MEMORANDUM OF AGREEMENT
between the
CITY OF PEABODY
and the
PEABODY POLICE BENEVOLENT ASSOCIATION,
MASSACHUSETTS COALITION OF POLICE LOCAL 351, AFL-CIO

The City of Peabody ("City") and the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO ("Union") hereby agree to extend their 2008-2011 collective bargaining agreement through June 30, 2012, except as modified by this Memorandum of Agreement as follows:

1. Article XXVII, Duration and Effective Date Agreement

Amend the first three paragraphs to read:

"The terms and provisions of this agreement shall be effective July 1, 2011 or at such later date as to certain provisions, thereof, as may be specifically referred to in this agreement.

This agreement shall remain in full force and effect until 11:59 P.M. on June 30, 2012. On or after September 1, 2011 either party may submit its proposals for a new agreement to be effective on the termination of this agreement and the parties shall proceed forthwith to bargain collectively with respect thereto.

If a successor agreement has not been executed on or before June 30, 2012, this agreement shall continue in force and effect until a successor agreement is executed."

2. Article XII, Wages, Section 1, Compensation Schedule

Delete the compensation rates and percentages listed for July 2007, July 2008 and July 2009.

Change the July 2010 schedule heading to read:

"July 2011
Biweekly/annual
0%"

and repeat the compensation rates previously listed for July 2010.

3. Article V, Paid Holidays

Amend to delete September 11 as a paid holiday and instead designate September 11 as a day of remembrance entitled "Patriot Day".

4. Article V, Paid Holidays

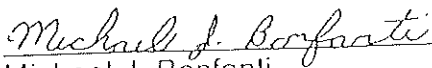
Amend to add "National Peace Officers Memorial Day, May 15" as a paid holiday.

5. Ratification

This Memorandum of Agreement is subject to ratification by the Union membership.

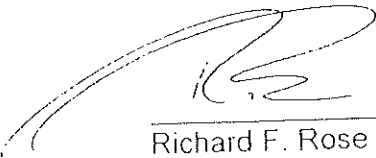
Executed this 21st day of April 2011.

For the City of Peabody:



Michael J. Bonfanti
Mayor

For the Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO



Richard F. Rose
President

SIDE LETTER OF AGREEMENT

WHEREAS, the City of Peabody (City) and the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) are parties to a collective bargaining agreement effective July 1, 2008 to June 30, 2011; and

WHEREAS, the City and the Union have agreed to a successor collective bargaining agreement effective July 1, 2011 to June 30, 2012 under the terms set forth in their 2011-2012 Memorandum of Agreement dated April 15, 2011 (Agreement); and

WHEREAS, during the course of negotiations of the Agreement, the parties discussed three memoranda issued by the City of Peabody Chief of Police regarding a "Swing Shift/Relief Shift Watch Commander" (#10-65 issued 8/03/2010), "Time Due Use" (#10-113 issued 12/30/2010) and "Light Duty for Injured Officers" (#11-09 issued 2/23/2011); and

WHEREAS, The Union requested bargaining on each of the three issues; and

WHEREAS, there has been no implementation by the City or agreement with the Union of any of the three issues, and

WHEREAS, the City and the Union have been meeting periodically as a labor-management committee to review and amicably resolve any differences and problems of mutual concern;

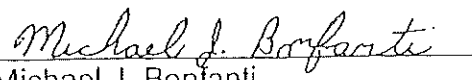
NOW THEREFORE, the parties agree to the following:

1. The labor-management committee will continue to meet periodically in an effort to resolve any differences and problems of mutual concern.
2. The issues of "Swing Shift/Relief Shift Watch Commander", "Time Due Use" and "Light Duty for Injured Officers" shall be placed on the agenda for future labor-management committee meetings between the parties following the execution of this side letter.
3. In the event the parties are unable to reach agreement on any of the three issues, the City and the Chief shall not be allowed to unilaterally implement their position upon impasse during the term of the Agreement; provided, however, that the City and the Chief of Police shall be able to make further proposals on these matters for the successor contract to the 2011-2012 Agreement in accordance with the reopener provisions of Article XXVIII, Duration and Effective Date Agreement.

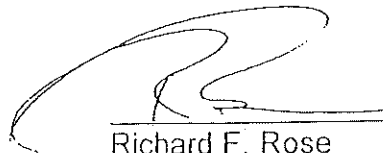
This Side Letter of Agreement is entered into this 21st day of April, 2011.

For the City of Peabody:

For the Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO



Michael J. Bonfanti
Mayor



Richard F. Rose
President

SIDE LETTER OF AGREEMENT

WHEREAS, the City of Peabody (City) and the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) are parties to a collective bargaining agreement effective July 1, 2008 to June 30, 2011, and

WHEREAS, the City and the Union have agreed to a successor collective bargaining agreement effective July 1, 2011 to June 30, 2012 under the terms set forth in their 2011-2012 Memorandum of Agreement dated April 15, 2011 (Agreement); and

WHEREAS, prior to the commencement and during the course of negotiations of the Agreement, the parties discussed the bargaining history and legality of the two dollar (\$2.00) surcharge deducted from the employee's private jobs/detail rate; and

WHEREAS, the parties have a mutual desire to further discuss and fully review the surcharge issue as it pertains to the appropriate administrative fee and proper detail rate;

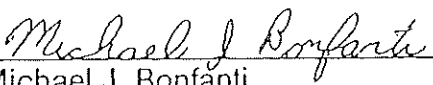
NOW, THEREFORE, the parties agree to the following:

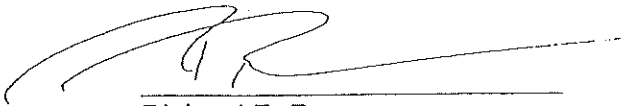
1. As soon as possible following the execution of this side letter, the parties shall meet to review the surcharge issue in an attempt to clarify any bargaining history and to resolve any differences regarding the application of law.
2. Any discussions and possible agreement to change the surcharge and detail rate received by officers, whether based upon bargaining history, legality or other reason, shall be completed by the parties on or before June 30, 2011.

This Side Letter of Agreement is entered into this 21st day of April, 2011.

For the City of Peabody:

For the Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO


Michael J. Bonfanti
Mayor


Richard F. Rose
President

SIDE LETTER OF AGREEMENT

WHEREAS, the City of Peabody (City) and the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) are parties to a collective bargaining agreement effective July 1, 2008 to June 30, 2011, and

WHEREAS, the City and the Union have agreed to a successor collective bargaining agreement effective July 1, 2011 to June 30, 2012 under the terms set forth in their 2011-2012 Memorandum of Agreement dated April 15, 2011 (Agreement); and

WHEREAS, during the course of negotiations of the Agreement, the parties discussed the status of Massachusetts General Laws Chapter 41, section 108L which has been the subject of litigation and potential legislative reform; and

WHEREAS, the litigation and potential legislative reform of Massachusetts General Laws Chapter 41, section 108L were unresolved at the time the parties reached their Agreement;

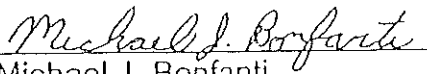
NOW, THEREFORE, the parties agree to the following:

1. In the event the Massachusetts Legislature or Supreme Judicial Court addresses Massachusetts General Laws Chapter 41, section 108L during the term of this Agreement, the City and the Union shall meet to further discuss said legislative or judicial action.

This Side Letter of Agreement is entered into this 21st day of April, 2011.

For the City of Peabody:

For the Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO


Michael J. Bonfanti
Mayor


Richard F. Rose
President

SIDE LETTER OF AGREEMENT

WHEREAS, the City of Peabody (City) and the Peabody Police Benevolent Association, MCOP Local 351, AFL-CIO (Union) are parties to a collective bargaining agreement (Agreement) effective July 1, 2011 to June 30, 2012; and

WHEREAS, the City and the Union have met by mutual agreement to review the two dollar (\$2.00) surcharge being deducted from the employee's private jobs/detail rate; and

WHEREAS, the City and the Union have discussed the original intent of the \$2.00 surcharge and now desire to change the way the \$2.00 is treated in the future;

NOW, THEREFORE, the parties agree to the following:

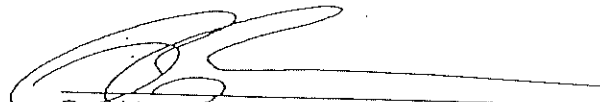
1. Effective September 30, 2011, the two dollar (\$2.00) surcharge deducted from the detail rate shall no longer be placed in a private detail fund but rather shall be paid to the officers working details. Thereafter, the private/detail rate for officers shall be thirty eight dollars (\$38.00) per hour for inside and outside details plus the 10% administrative fee as authorized by M.G.L. chapter 44, §53C.
2. The Union expressly waives any claim to the two dollar (\$2.00) surcharge during the period when it was deducted from the detail rate.

This Memorandum of Agreement is entered into this 2nd day of September 2011.

For the City of Peabody

For the Peabody Police
Benevolent Association,
MCOP Local 351

Michael J. Bonfanti
Mayor, City of Peabody


President

To: Cara Lariviere
From: Chief Robert L. Champagne
Subject: Detail Rates Schedule
Date: September 15, 2011

Effective 09/30/11, pursuant to PPBA Contract:

Patrolman Max Rate	\$24.33 per hour	(09-01-10)
Detail-Regular	\$38.00 per hour	
Emergency City	\$38.00 per hour	
Emergency Sunday	\$48.66 per hour **	Time and one half of the highest patrolman rate
Emergency after 9 PM (Mon.-Sat.)	\$48.66 per hour	(except city)
Holiday	\$48.66 per hour ***	Time and one half of the highest patrolman rate
Police Cruiser	\$10.00 per hour	

* An Emergency detail is considered to be an unscheduled detail that is called in between the hours of 9:00pm and 6:00am and requires immediate police response (power line, telephone pole, water break, etc.)

** Sunday rate applies only to road jobs that are NOT paid for by a city department. PMLP is the only exception and they DO currently pay Sunday Rate. Sunday shall be 0001-2359 on a calendar Sunday

*** Holidays - Thanksgiving, Christmas Eve, Christmas Day, New Year's Eve, New Year's Day) 0001-2400 of the calendar date

Schools - 4 hour minimum time and one half patrolman max rate, thereafter for hour

If there is not fully documented auditable reason, billing and payment shall be at \$38.00 rate

All Details are 4 hour minimum

Six hours minimum bill for 4 plus hours - 6 hours

Eight hour minimum bill for 6 hours plus - 8 hours

-2-

After 8 hours (1.5x detail rate) hour by hour - \$57.00 hour thereafter

No travel time: Police will be paid from the time they begin working at assigned duty station per department rules and regulations. Officers will not be paid for all shifts will fully be filled out and signed from request to payment

Any other question regarding conflicts, fees, rates, or otherwise not particularly addressed here – please refer to Chief.

RLC/jmf

Cc: Michelle Regas
Officer Richard Rose, President PPBA

MEMORANDUM OF AGREEMENT
BETWEEN THE
CITY OF PEABODY
AND THE
PEABODY POLICE BENEVOLENT ASSOCIATION
MASSACHUSETTS COALITION OF POLICE, LOCAL 351, AFL-CIO

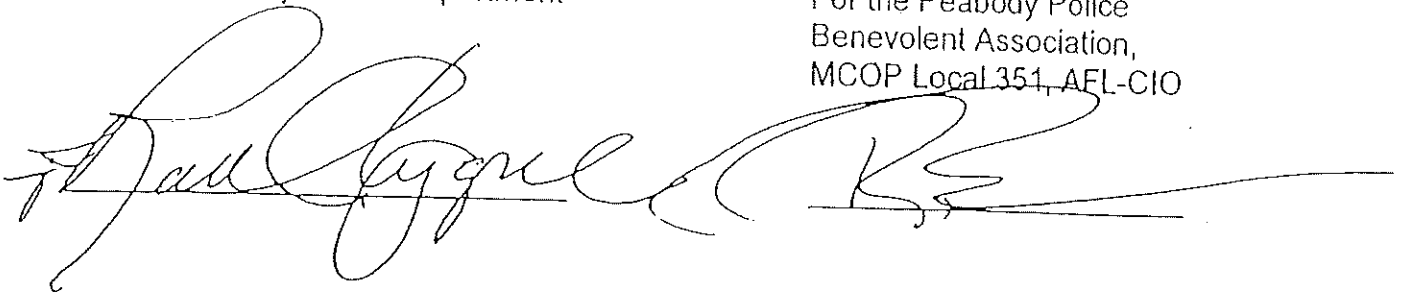
This Memorandum of Agreement is between the City of Peabody ("City") and the Peabody Police Benevolent Association, Massachusetts Coalition of Police, Local 351 AFL-CIO ("Union"). A question has arisen over the appropriate detail rate to be charged for details worked for Aggregate Industries on the Route 114/Andover Street state project. Therefore, the City and the Union agree as follows:

1. Effective July 15, 2010, details worked by Peabody police officers for Aggregate Industries on Route 114/Andover Street state project shall be billed out at forty dollars (\$40.00) per hour.
2. The detail rate set forth herein shall be billed regardless of the day of the week the detail work is performed.
3. This Memorandum of Agreement shall be applicable only to detail work performed for Aggregate Industries on the Route 114/Andover Street state project.

Executed this 14th day of OCTOBER, 2010

For the Peabody Police Department

For the Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO



MAJOR
S. Smith

MEMORANDUM OF AGREEMENT

between the

CITY OF PEABODY

and the

PEABODY POLICE BENEVOLENT ASSOCIATION,
MASSACHUSETTS COALITION OF POLICE LOCAL 351, AFL-CIO

The City of Peabody ("City") and the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO ("Union") hereby agree to extend their 2011-2012 collective bargaining agreement through June 30, 2015, except as modified by this Memorandum of Agreement as follows:

Duration (Change to Article XXXII)

Amend article to reflect the following duration:

July 1, 2012 through June 30, 2015

Wages (Article XII)

Salaries shall be increased as follows:

Effective July 1, 2012: 2%

Effective July 1, 2013 2%

Effective July 1, 2014 2%

Civilian Positions (NEW Article XXVIII)

Subject to this provision, the City may establish the following new, non-bargaining unit civilian positions:

Information Technology (I.T.) (up to two positions may be created)

Civilian Crime Analyst (one position may be created)

The City agrees that the above positions, if created, will not be funded with any funds dedicated to the sworn police positions budget. If created, the above positions will not be permitted to perform any duties of sworn members of the Peabody Police Department. If created, the above positions will only be staffed by civilians, i.e., no sworn members of the Peabody Police Department will be called on to staff these positions on a short or long term basis.

Assessment Centers (NEW Article XXIX)

Within the parameters approved by the Civil Service Commission and the Human Resources Division (HRD) and testing standards generally accepted for police promotional exams, the City retains the right to utilize assessment center testing as a method of testing, evaluating and ranking of candidates for promotion. The following procedure shall be the agreed upon procedure:

- A. The City and Union agree that the testing material will include materials drawn from the HRD reading list and may, at the discretion of the Mayor, include the Police Department's policies, procedures, rules and regulations or other related management/supervisory material. Applicants participating in the assessment center testing will be given a minimum of six (6) months written notice of the date of the exam and the list of the resources to be used for the written exam. The written exam shall constitute forty percent (40%) of the applicant's final exam score.
- B. The other components of the assessment center testing shall be selected from, but not limited to the following:
 - a. Handling a citizens complaint
 - b. Interview with an underperforming or troubled employee
 - c. Tabletop scenario for incident command
 - d. Event Planning
 - e. Participation in a community meeting
 - f. Addressing a media inquiry
 - g. Timed question and answer of common police events
 - h. In-basket
 - i. Command team meeting
 - j. Take home/ overnight written assignment
 - k. Written exam of Police Dept. Policy and Procedure Manual

These other components shall constitute forty percent (40%) of an applicant's final score.

- C. Education and experience shall constitute twenty percent (20%) of an applicant's final score. Veterans and service points shall be awarded according to HRD regulations
- D. The City and the Union shall both participate in the selection of an assessment center consultant to act as the facilitator of the assessment center process ("the vendor"). The final selection of a vendor rests with the Mayor.
- E. The vendor shall use a masking procedure to guarantee candidates are anonymous.
- F. In order to establish a promotional list, the City shall call for a promotional assessment center every three (3) years. If there is a vacancy in a particular rank

and no list exists, or the list is inadequate under Civil Service law, a test may be called sooner than three (3) years, consistent with the six (6) month's notice requirement stated in Section A.

CALEA Accreditation (New Article XXX)

The parties agree that the City shall pursue CALEA accreditation without objection from the Union. The City agrees that it will bargain any change in mandatory subjects of bargaining (as that term is defined by G.L. c. 150E) occasioned by accreditation upon request from the Union.

Drug Testing (Change to Article XXXIV, and Attachment A)

The parties agree that they will separately meet to negotiate an agreed upon side letter of agreement to address the impact of the passage of "medical marijuana" in the Commonwealth, and also to address ways to strengthen the current drug testing procedures to ensure that officers who are abusing prescription medications that would impair judgment, behavior and/or motor skills are identified.

The parties agree to modify the language of Attachment A as follows:

Section 1. Purposes for Drug Testing

The following drug testing program shall apply to members of the bargaining unit for purposes of reasonable suspicion, random testing, promotions, long term absences and post-accidents as outlined below. All drug testing of employees shall be conducted on Department time. In the event that testing of an employee cannot be done on regular duty, the employee shall be compensated overtime pay in accordance with the collective bargaining agreement.

E. Post-Accident

Employees involved in an on duty motor vehicle accident (including motorcycle or bike accident) or employees involved in a motor vehicle accident on the way to or from work in a City owned motor vehicle, shall be subject to testing in accordance with D.O.T. rules or regulations.

Section 2.

A. Test Cutoffs

(Add the following)

The parties agree that the test will also screen for any drug legislated as illegal during the life of this agreement, subject to the establishment of proper screen and confirmation cutoffs

Vacations (Article VIII)

Amend Section 4. C. to allow for seven (7) days of annual vacation entitlement to be used in single day increments.

Amend vacation pick procedure to extend the "winter vacation pick" to the end of May. Reduce current practice of picking 5 days/8 days for the winter pick to 4 days. Add requirement that Sergeants and Lieutenants shall be required to bid winter and summer vacation according to the same practice as patrol officers.

Line of Duty Death (New Article XXXI)

The City will pay \$50,000 to the estate of any sworn member of the Union killed in the line of duty. This payment is in addition to any and all other benefits, contained in this agreement or elsewhere, paid in the event of the line of duty death of an officer. In addition, any sworn member of the Union killed in the line of duty will be posthumously promoted one rank ~~rank~~ *grade RANK* 487

Paid Holidays (Article V)

Amend as follows:

C. In addition to his regular weekly compensation, each employee shall receive an additional days pay (computed at $\frac{1}{4}$ of his weekly regular compensation) for each said paid holiday. Effective 1/1/2013, employees will have the option to receive additional pay for each paid holiday or to accrue a holiday day off ("HDO") in lieu of such pay. Each HDO will be equivalent to 10 hours of straight time worked. It shall be the responsibility of each employee to notify the City (using a form developed by the Department) by December 1 of each year of how many days of holiday pay and how many HDOs the employee wishes to receive in the following calendar year. (The parties agree that such notification will take place within one week of the ratification of this agreement for 2013). If an employee fails to notify the City of his/her desire for the following calendar year by December 1, then said employee will receive additional pay for each paid holiday in the following year. All HDOs must be used prior to the end of the calendar year in which they are earned.

Add New Section D:

Effective 7/1/2013, each employee who actually works on Thanksgiving Day, Christmas Day, New Years Day or Independence Day shall, in addition to any pay or HDO received pursuant to Section C above, receive an 8 hour TD. Any employee may not receive more than one TD pursuant to this section (i.e. an employee who works two shifts on Thanksgiving Day will only receive one 8 hour TD).

Private Job/Details (Article XII)

Amend Section B.1. to change "thirty-eight (\$38)" to "forty dollars (\$40)."

Amend Section B.5. as follows:

5. All details shall be guaranteed a minimum of four (4) hours per detail if employee works less than four (4) hours. All details shall be guaranteed a minimum of eight (8) hours per detail of the employee works between five (5) and eight (8) hours.

Defibrillator Pay (Article XII, Section 8)

Add \$500 to base pay rates contained in Article XII, § 1. Amend Article XII, Section 89 to read as follows:

As of July 1, 2012, all members of the bargaining unit shall be certified as defibrillator trained. Any initial defibrillator certified training shall be at no cost to the City, with re-certification training being conducted during regular training programs of the Department.

Weapon Training (Article XII, Section 6)

Increase two installments from \$375 each to \$425 each.

Patrol Division Shift Bid (NEW Article XXXII)

Effective 7/1/2013, there shall be an annual bid for shifts in the Patrol Division only. Each December, all officers in the Patrol Division shall indicate their shift preference for the upcoming calendar year. Shifts will then be assigned by seniority. The new shift assignments will be effective January 1.

Association Business Leave (Article X)

Amend Section 1.A. to change "Forty (40)" to "forty five (45)"

Amend Section 2. To change "twelve (12)" to "seventeen (17)"

Retirees performing Private Jobs/Details (NEW Side Letter of Agreement)

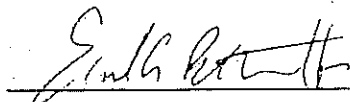
The Chief of Police and a representative of the bargaining unit will meet to develop and implement a departmental policy allowing for retired members of the bargaining unit to work private details for the City of Peabody Police Department as Special Police Officers. The implementation of the final policy will be at the discretion of the Police Chief. The policy will initially be implemented on a one (1) year trial basis. The policy will contain provisions providing that it shall be the responsibility of the retired member to attend department training as required by M.G.L. and the Chief of Police at no cost to the City to maintain the necessary standards to work as a special police officer. The policy will also provide that no retired member will be entitled to be working as a special police officer

during any training, such that the department will incur no liability for any injuries suffered by said retired member while conducting any training.

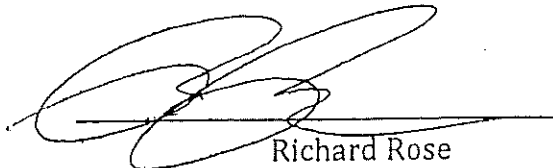
Entered into this ____ day of November, 2012.

For the City of Peabody

For the Peabody Police Benevolent
Association, Local 351, MCOP, AFL-CIO



Edward A. Bettencourt
Mayor



Richard Rose
President

ARTICLE XII WAGES

Section 1. Compensation Schedules

	July 2012	July 2013	July 2014
	Biweekly/Annual	Biweekly/Annual	Biweekly/Annual
PATROLMAN 2%	2%	2%	
STEP 1*	\$1,766.99/45,951.94	\$1,802.32/46,860.32	\$1,838.40/47,798.40
STEP 2*	\$1,886.09/49,038.52	\$1,923.84/50,019.84	\$1,962.32/51,020.32
MAXIMUM	\$2,005.27/52,436.89	\$2,046.96/53,220.96	\$2,086.24/54,242.24
GRADE 14	\$2,068.00/53,768.00	\$2,109.39/54,843.36	\$2,151.52/55,939.52
GRADE 16	\$2,303.12/59,881.06	\$2,349.20/61,079.20	\$2,396.16/62,300.16
ARMORER	\$2,133.92/55,481.92	\$2,109.36/54,843.36	\$2,220.16/57,724.16
SERGEANT	\$2,303.12/59,881.06	\$2,349.26/61,079.20	\$2,396.16/62,300.16
LIEUTENANT	\$2,622.80/68,192.80	\$2,595.28/67,477.28	\$2,728.80/70,948.80

(updated 11/5/12)

Section 2. Specialist Pay

- A. A member of the Police Department assigned to photographic or identification work in said Department shall after completion of one year's service in such assignment, receive in addition to his/her annual salary as a Police Officer, the sum of six hundred dollars (\$600.00) a year to be paid to him as long as he is assigned to said photographic or fingerprint identification work.
- B. A patrolman who is assigned the duties of Armorer shall receive two additional pay grades.
- C. A patrolman who is assigned the duties of Parking Meter Repairman, shall receive three additional pay grades.
- D. Shall be interpreted to allow more than one Juvenile Safety Officer. A "Juvenile Safety Officer" as provided in this section of the agreement shall be synonymous with "School Safety Officer" and "School Resource Officer: and such assigned officers shall receive Grade 16 compensation. *(updated 2/7/14)*
- E. A member of the Police Department assigned the duties of canine patrol officer, shall receive, in addition to his regular compensation, the additional sum of six hundred dollars (\$600.00) annually for said duties and the sum of three hundred and fifty (\$350.00) annually for the maintenance and upkeep of said dog.

Section 3. Longevity All members of the Police Department shall receive career monetary awards to be computed as follows:

Five years of full-time continuous payroll service	\$300.00
Ten years of full-time continuous payroll service	\$ 500.00
Fifteen years of full-time continuous payroll service	\$1,000.00
Twenty years of full-time continuous payroll service	\$1,100.00
Twenty five years of full-time continuous payroll service	\$1,500.00
Thirty years of full-time continuous payroll service	\$2,500.00

- A. Any permanent member of the Police Department who has or will reach the 5th, 10th, 15th, 20th, 25th or 30th anniversary of his date of employment by the City in a calendar year shall be paid in a lump sum any respective longevity award due him on the regular pay dates nearest December 1.
- B. Members of the Bargaining Unit appointed to the Department prior to January 1, 1970, upon reaching twenty (20) years of continuous service to the City of Peabody, shall receive an annual sum each of \$700. This sum shall be added to their regular annual salary for retirement purposes. Notwithstanding the foregoing provisions, such members, if also eligible for an

receiving education incentive base salary increases pursuant to the provisions of General Laws, Chapter 41, Section 108L shall receive the higher of twenty-five years of service there-under, or said education incentive pay, but not both.

The annual expenditure under this section shall not exceed forty-two hundred dollars (\$4,200) if in the event that the number of employees entitled to this benefit exceeds thirteen (13) then by dividing the total amount \$4,200 by the number of said eligible employees. Said "Service Benefit" payment shall be made on the first payroll date in the month of December in each year.

- A. If an employee should retire on length of service such award is paid for that year, it shall be paid to him with his/her final check for that year.
- B. If an employee's termination is caused by death, such payment shall be made to his spouse or beneficiary in accordance with the City's group life insurance policy
- C. An employee who returns to full-time continuous payroll service after a service break not exceeding two (2) years will be deemed not to have broken service there under.

Section 4. Night Work Premium

There shall be pay differential between men/women of all rank, excluding the Chief, working days, and men/women of all rank excluding the Chief, working nights as follows: The men/women working on the third division (4 p.m. to 12 midnight) shall received a seven percent (7%) higher pay differential; the men/women working on the first division (12 midnight to 8 a.m.) shall receive and eight percent (8%) higher pay differential.

Section 5. Training Bonus

- A. All permanent full-time members of the Police Department who have graduated from or will graduate from the State Police Academy or any approved school of instruction for Police Officers shall be awarded a bonus of one hundred dollars (\$100) per annum to be paid upon successful completion of the course. This annual payment shall only apply to members of the Police Department in the employ of the City on or prior to December 31, 1971.
- B. A maximum of twelve (12) members of the department per year shall attend school.
- C. Not less than two (2) Sergeants shall attend Babson College Management Training Program annually, without loss of pay or benefits.

Section 6. Weapon Training

Effective July 1, 2012, the Department shall pay two installments of \$425 for training pay annually (in July and January) to officers for weapon qualification training. In the event an officer fails to qualify during the initial training, the officer shall not be compensated for the time necessary until he/she successfully qualifies. The Department, however, shall continue to pay for the cost of ammunition and the trainer until the officer's successful completion of training. *(updated 11/5/12)*

Section 7. Expense Reimbursement

Employees assigned to "CID" shall each received an annual sum of four hundred dollars (\$400) as expense reimbursement for out-of-pocket expenses incurred and/or paid by them in the course of their work, which \$400 expense reimbursement shall be paid to them on the first payday in June of each year.

Section 8. Defibrillator Pay

Add \$500.00 to base pay rates.

As of July 1, 2012, all members of the bargaining unit shall be certified as defibrillator trained. Any initial defibrillator certified training shall be at no cost to the City and re-certification training being conducted during regular training programs of the Department. *(updated 11/5/12)*

Section 9. Pay Day

Effective on or after the first payroll period of December 6, 2006 they shall be paid bi-weekly (every other week). Employees on the payroll as of the date bi-weekly pay commences shall receive one week of regular compensation in advance of the week worked. In recognition thereof, any such employee receiving an advance of pay, upon separation of employment, whether by retirement, resignation, dismissal, death or any other means, shall re-pay to the City, said week advancement of pay. The repayment shall be the same dollar amount as originally advanced to the employees under this Section. All new employees hired on or after the first payroll period shall be paid bi-weekly (every other week) without any advance of pay.

**MEMORANDUM OF AGREEMENT
BETWEEN THE
CITY OF PEABODY
AND THE
PEABODY POLICE BENEVOLENT ASSOCIATION
MCOP LOCAL 351 AFL-CIO**

The City of Peabody ("City") and Peabody Police Benevolent Association, MCOP Local 351 hereby agree to extend their Collective Bargaining Agreement (July 1, 2012 through June 30, 2015) except as modified by this Memorandum as follows:

1. DURATION (ARTICLE XXVIII):

July 1, 2015 through June 30, 2018.

2. WAGES (ARTICLE XII):

Effective July 1, 2015 -	increase wage schedule by 1.75%
Effective July 1, 2016 -	increase wage schedule by 2%
Effective July 1, 2017 -	increase wage schedule by 2%

3. GRIEVANCE PROCEDURE (ARTICLE III)

An oral reprimand shall not be considered a level of discipline. In the event of a written or oral reprimand, the employee has the right to file a written response which shall be placed in his/her file. However the employee shall have no right to pursue a grievance. The reprimand shall be removed from the employee's file in the event that the employee is not subject to discipline of the same nature for a period of ninety (90) days thereafter.

4. SICK LEAVE (ARTICLE XX, 4, D)

An employee absent because of the employee's illness shall not be eligible for private jobs/details or overtime assignment for thirty-six (36) hours after the conclusion of the last sick day.

5. MISC/TAZER TRAINING (ARTICLE XXVII)

All officers working in patrol shall complete training in the use of tazers. The City shall arrange for said training (or overtime or compensatory time at the discretion of the officer) and bear the cost of instruction.

6. CLOTHING ALLOWANCE (ARTICLE XV)

All officers shall have a Class A uniform on or before June 30, 2018. Permanent members of the police department shall receive an annual clothing allowance of \$1,000 effective July 1, 2015.

7. ACCREDITATION (ARTICLE XXV)

Effective July 1, 2015, and continuing thereafter each employee shall receive Accreditation pay of \$500 to be included in base pay.

8. WAGES – WEAPONS TRAINING (ARTICLE XII, Section 6)

The annual stipend for weapons training shall be \$1,100 effective July 1, 2015; said sum shall be included in base pay.

9. WAGES – SHIFT DIFFERENTIAL (ARTICLE XII)

The differential for employees working the 4:00 p.m. to 12:00 midnight shift and the 12:00 midnight to 8:00 a.m. shift shall be increased by .25% effective July 1, 2015.

10. RANK DIFFERENTIAL (ARTICLE XII)

The rank differential from Patrol to Sergeant shall be 18% and the differential from Sergeant to Lieutenant shall be 17% effective July 1, 2015.

11. PRIVATE JOB/DETAILS (ARTICLE XIII(B))

The detail rate for private jobs/extra work details (including all details performed for the Peabody Municipal Light Plant) shall be \$46 per hour. The detail rate of City of Peabody details shall be \$42 per hour. All details shall be guaranteed a minimum of eight (8) hours per detail if the employee works between four (4) but less than eight (8) hours. These provisions shall operate prospectively.

12. DETECTIVE/ON-CALL STIPEND

A detective who is on call shall receive a stipend of four hours of overtime per week. This provision shall operate as of the execution and ratification of this Agreement.

13. PHYSICAL FITNESS INCENTIVE PROGRAM

The City shall establish a voluntary physical fitness incentive. Any employee who participates in the annual program and takes and passes a physical fitness test on or about May of a particular year shall receive a stipend of \$200 on or about June of that year.

14. EDUCATION INCENTIVE PAY

Employees shall have the option to elect each year to receive education incentive pay on a bi-weekly; bi-annual or annual schedule.

15. LABOR/MANAGEMENT STUDY COMMITTEE

The parties shall establish a Labor Management Committee to evaluate and negotiate relative to a "4 on/4 off" work schedule.

Entered this 11th day of January, 2016

For the City of Peabody

By: Edward A. Bettencourt, Jr.

Edward A. Bettencourt, Jr., Mayor

For Peabody Police Benevolent Association

By: Richard F. Rose

Richard F. Rose, President

1-27-16

MEMORANDUM OF AGREEMENT
BETWEEN THE
CITY OF PEABODY
AND THE
PEABODY POLICE BENEVOLENT ASSOCIATION
MCOP LOCAL 351, AFL-CIO

The City of Peabody ("City") and the Peabody Police Benevolent Association, MCOP Local 351, AFL-CIO ("Union") hereby agree to extend their Collective Bargaining Agreement (July 1, 2015 through June 30, 2018) except as modified by this Memorandum as follows:

1. DURATION (Article XXVIII):

July 1, 2018 through June 30, 2021

2. WAGES (Article XII Section 1 Compensation):

Effective July 1, 2018 – Increase wage schedule by 2%
Effective July 1, 2019 – Increase wage schedule by 2%
Effective July 1, 2020 – Increase wage schedule by 2%

3. WAGES (Article XII Section 9 Step Change):

Effective July 1, 2018, add a 2% wage step for all officers classified as patrolmen who have attained 15 years of service in the Peabody Police Department. This step shall not be used to recalculate rank differentials negotiated in the last agreement.

4. WAGES (Article XII Section 2 Specialist Pay):

Effective July 1, 2018, all Specialty Officers shall receive the same Grade 16 pay rate. Specialty officers are as follows: School Resource Officer (or other officer assigned to the schools), Armorer, Elder Affairs Officer, Weapons Specialist, Parking Meter Repairman, Area 14 Peabody Square Officer, Detail Officer and North Shore Mall Officer.

5. WAGES (Article XII, Section 3 Longevity):

Effective July 1, 2018, longevity pay shall be the following:

Five year of full-time continuous service -	\$400
Ten years of full-time continuous service -	\$600
Fifteen years of full-time continuous service -	\$1,100
Twenty years of full-time continuous service -	\$1,400
Twenty five years of full-time continuous service -	\$1,800
Thirty years of full-time continuous service -	\$2,800

6. SICK LEAVE (Article XX, Section 4.D, Details/Overtime):

An employee absent because of sick leave (either for the employee or for a family member) shall not be eligible for private jobs/details, overtime or to work a swap for 24 hours after the conclusion of the last sick day.

7. PRIVATE JOB/DETAILS (Article XIII.B.1):

The detail rate for private jobs/extra work details (including all details performed for the Peabody Municipal Light Plant) shall be \$50 per hour. The detail rate for City of Peabody details shall be \$44 per hour. These changes shall operate prospectively.

8. PRIVATE JOB/ DETAILS (Article XIII. E. General Rules):

All detail slips shall be submitted to the detail clerk within 14 days of said detail. If not done within that time frame, the employee will be notified of an additional 14 day period for submission of the detail slip. If the employee does not submit the detail slip after the second 14 day period, the employee shall not be allowed to work further details until the detail slip has been submitted.

9. ASSESSMENT CENTERS (Article XXIX.F):

Delete Section F regarding the 3 year requirement for the calling of an Assessment Center and substitute the following:

"F. The City will call for a promotional assessment center to be conducted within 6 months after return of the written promotional test scores and consistent with the 6 months' notice requirement stated in Section A."

10. MISCELLANEOUS (Article XXVII, Section 4):

The City will increase the amount of funeral expenses for line of duty death from \$2,000 to \$5,000.

11. MISCELLANEOUS (Article XXVII, new Section 12):

"Section 12. Any employee who gives the Police Chief notice that he or she will retire one year or more in advance of said retirement shall receive a payment of \$750 at the time of retirement."

12. DETECTIVE ON-CALL STIPEND

A detective who is on call shall receive a stipend of 8 hours of overtime per week.

13. WORK SHIFTS, WORK WEEK, WORK SCHEDULE (Article XIX, Section 2.B):

Detectives shall be added to the list of 5 and 2 assignments in Section B. All current detectives as of the execution of this Memorandum of Agreement shall have the option of remaining on the same shift as present (with applicable night shift differential, if any), or switching to a split shift as proposed by the Police Chief (with applicable night shift differential only to the night shifts assigned). All future detectives shall be subject to a split shift at the discretion of the Chief with applicable night shift differential paid only for the night shifts assigned.

14. WORK SHIFTS, WORK WEEK, WORK SCHEDULE (Article XIX, new Section C):

Add the following subsection C to Section 2:

"C. The parties agree to continue to discuss a schedule change for Traffic Officers from a 4 and 2 schedule to a 5 and 2 schedule. Individual Traffic Officers would need to agree to the change in schedule and the change would be for a minimum of 6 months. Traffic officers going to the 5 and 2 schedule would receive the additional time off that is afforded to the officers currently on a 5 and 2 schedule. In the event the parties implement this change of schedule, it shall be on the basis of a pilot program to be revisited by them at the conclusion of the program. The Chief shall notify the Union if and when there is a desire to move forward in order to execute a memorandum of agreement for the pilot program.

15. SICK LEAVE (Article XX), new Section 8):

"Section 8. An employee who uses 5 days or less during a calendar year shall receive 1 day's compensation to be paid by February 1st of the following year."

16. LABOR/MANAGEMENT STUDY COMMITTEE - SCHEDULES

The parties agree to continue to evaluate and negotiate over work schedules.

17. LABOR/MANAGEMENT STUDY COMMITTEE - VIOLENT ACT INJURY

The parties agree to evaluate and negotiate over contract language and compensation to be paid for officers on leave due to a violent act injury which occurs in the course of their employment. The objective of the parties is to come to a resolution on violent pay injury and compensation on or before January 1, 2019.

Executed this 30th ^{Aug-18} day of July, 2018 ^{RR}

For the City of Peabody

By: Edward A. Bettencourt, Jr.
Edward A. Bettencourt, Jr. Mayor

For the Peabody Police Benevolent Association
MCOP Local 351, AFL-CIO

Richard F. Rose
Richard F. Rose, President

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
CITY OF PEABODY
AND THE
PEABODY BENEVOLENT ASSOCIATION
MCOP LOCAL 351, AFL-CIO

WHEREAS, the City of Peabody ("City") and the Peabody Police Benevolent Association, MCOP Local 351, AFL-CIO ("Union") entered into a Memorandum of Agreement dated August 30, 2018 ("MOA") which modified their collective bargaining agreement for the July 1, 2018 through June 30, 2018 term; and

WHEREAS, paragraph 3 of the MOA established a 2% wage step effective July 1, 2018 for all officers classified as patrolmen who have attained 15 years of service in the Peabody Police Department; and

WHEREAS, the parties desire to clarify their intent that the application of the 2% wage step applies to patrolmen who are Specialty Officers;

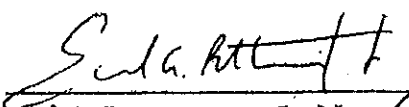
NOW THEREFORE, the City and the Union hereby agree to the following:

1. The 2% wage step increase in the MOA is for all officers classified as patrolmen who have attained 15 years of service in the Peabody Police Department including all patrolmen who are assigned as Specialty Officers.
2. The pay rates and retroactive pay of Specialty Officers shall be adjusted as of July 1, 2018 in accordance with this Memorandum of Understanding.

Executed this 30 of November, 2018

For the City of Peabody

For the Peabody Police Benevolent Association
MCOP Local 351, AFL-CIO

By: 

Edward A. Bettencourt, Jr. Mayor



Richard F. Rose, President



Peabody Police Benevolent Association

6 Allen's Lane
Peabody, Massachusetts 01960



GRIEVANCE FORM

DATE:

AGGRIEVED EMPLOYEE(S):

NATURE OF GRIEVANCE: (INCLUDE DATES, TIMES,
LOCATIONS, ETC.)

WITNESSES:

CONTRACT PROVISION OR PAST PRACTICE:

REMEDY SOUGHT:

SIGNATURE OF AGRIEVED EMPLOYEE

P.P.B.A. REPRESENTATIVE

STEP 1 RESPONSE:

SETTLED _____ UNSETTLED _____

SUPERIOR OFFICER

STEP 2 RESPONSE:

SETTLED _____ UNSETTLED _____

CHIEF OF POLICE

STEP 3 RESPONSE:

SETTLED _____ UNSETTLED _____

MAYOR

STEP 4 - ARBITRATION DATE & TIME:

ARBITRATION RULING (ATTACH AGREEMENT):

SETTLED _____ UNSETTLED _____

ARBITRATOR



Peabody Police Benevolent Association

6 Allen's Lane, Peabody, Massachusetts 01960



To: Chief Robert L. Champagne

May 31, 2012

From: Officer Richard Rose, President P.P.B.A

RE: Recent Meeting on May 31, 2012

Sir,

The Peabody Police Benevolent Association would like to thank you for a very productive meeting today. Just so we have an understanding of what we agreed upon today, we would like to review it with you. In regards to operations/911 operator, it was agreed upon that if you are unable to fill operations with a dispatcher than a police officer will be hired on overtime using the current overtime rules. If the officer that was hired is properly trained to work the desk/911, then he/she will go to operations. If the officer is not properly trained to work the desk/911, the overtime officer will go to the street and the officer that is working the street and is properly trained will work operations. In the event that there are no officers on that shift that are properly trained to work the desk/911, then overtime will still be filled but it will be by the officer with the lowest overtime hours and that is properly trained.

This practice of varying from the overtime rules would be as a last resort and is based solely on the fact that there is grant money in place to pay for this practice. Also, with the hopes that future grant money may come up again to train more officers to work operations, this issue will become less common or may not arise again.

Respectfully Submitted,

Officer Richard Rose, President P.P.B.A

217601-11

PEABODY POLICE
BENEVOLENT ASSOCIATION,
MCOP LOCAL 351, AFL-CIO

and

CITY OF PEABODY/
PEABODY POLICE DEPARTMENT

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Grievance # 12-03

SETTLEMENT AGREEMENT

In full and final settlement of the above-referenced matter, the Peabody Police Benevolent Association, MCOP Local 351, AFL-CIO ("Union") and the City of Peabody, Peabody Police Department ("City" or "Department") hereby agree to the following terms (Agreement):

1. The Union shall withdraw grievance number 12-03 (1st Watch Operating below Minimal Staffing Levels) upon the execution of this Agreement and the completion of the terms set forth herein.
2. Upon execution of this agreement the City shall maintain optimum cruiser coverage as follows on Friday, Saturday, Sunday, and all holidays:

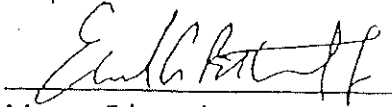
1 st Shift	5 cruisers
2 nd Shift	6 cruisers
3 rd Shift	7 cruisers

The desk officer and supervisors shall be in addition to the patrol officers manning the cruisers set forth above. The City shall backfill for officers out on earned leave including but not limited to vacation leave, personal leave, time due and sick leave.

3. On Monday, Tuesday, Wednesday and Thursday, the City shall strive to maintain cruiser coverage and staffing levels in accordance with the terms of Article XVIII of the collective bargaining agreement between the parties with optimum and minimum staffing levels as set forth in Memoranda 06-91 attached.

4. The parties agree that this Settlement Agreement shall be effective for a trial period of a minimum of six (6) months after its execution, and thereafter shall continue in effect unless either party notifies the other in writing within seven (7) days of its expiration of a desire to terminate the Settlement Agreement. In the event such notice is given, grievance number 12-03 shall no longer be withdrawn and the parties shall forthwith meet to discuss the grievance.
5. The signatories to this Agreement are authorized to bind their principals.

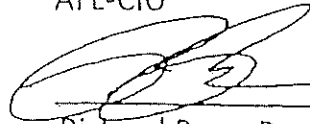
For and on behalf of
the City of Peabody/Peabody Police
Department



Mayor Edward Bettencourt Jr.

Dated: 12-12-12

For and on behalf of the
PPBA, MCOP Local 351,
AFL-CIO



Richard Rose, President PPBA

Dated: 12-12-12

SIDE LETTER OF AGREEMENT

COPY

WHEREAS, the City of Peabody (City) and the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, Article XXVI, Labor Management Meetings, of the Agreement requires the City and the Union to continue to discuss labor-management issues affecting the parties; and

WHEREAS, representatives of the City and the Union have met periodically to discuss and resolve a number of labor-management issues; and

NOW, THEREFORE, the parties agree to the following:

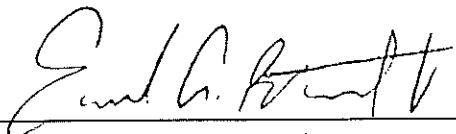
1. Article XIII Section B of the Agreement shall be deleted and substituted with an updated version as set forth in Attachment A to this Side Letter of Agreement.

2. When distributing overtime in accordance with department practices as provided in Article VII, Overtime Rates, Section 4, of the Agreement the parties agree that when officer are on leave of duty for 30 days or more or newly sworn officers will be placed on the master overtime list by averaging the total number of hours of opportunity for all officers on the current master list; provided, however, that this practice shall not include officers out on injury leave that have been indemnified by the City.

3. Under Article XXV, Accreditation of the Agreement, the parties recognize that is important for the accreditation process to have a Peabody Police Department Policy Committee made up of officers of the Department. The Police Chief shall solicit volunteers of the Policy Committee, but in the event there are insufficient volunteers, the Chief shall notify the Union President for the Union to further solicit volunteers. The Union shall be notified of any officers selected for the Policy Committee.

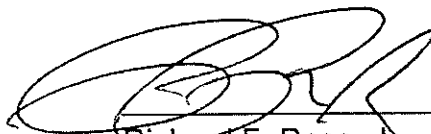
This Memorandum of Agreement is entered into this 7th day of January, 201¹⁴3.

For the City of Peabody



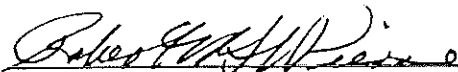
Edward A. Bettencourt, Jr.
Mayor, City of Peabody

For the Peabody Police
Benevolent Association,
MCOP Local 351



Richard F. Rose, Jr.
President, Peabody Police
Benevolent Association

For the Peabody Police Department



Robert M. St Pierre
Chief, Peabody Police Department

Attachment A

B. Private jobs/extra work details shall be paid in accordance with the following schedule:

1. The private/detail rate for officers shall be forty dollars (\$40) per hour for inside and outside details plus the 10% fee for the administration of details as authorized by M.G.L. chapter 44, §53C. In addition to the rate hereby established above, in the event that a police vehicle is requested for a road project, an additional ten dollars (\$10) per hour shall be charged for the use of said vehicle with a four (4) hour minimum.
2. In the event a detail is worked during the 24 hours of Thanksgiving Day, Christmas Eve (December 24th), Christmas Day (December 25th), New Year's Eve (December 31st) and New Year's Day (January 1st), officers shall receive time and one-half the detail rate set forth in paragraph #1 above.
3. In the event a detail is an emergency or performed on a Sunday, officers shall receive time and one-half the detail rate set forth in paragraph #1 above. An "emergency" shall mean a detail called in after 9:00 PM and starting before 6:00 AM the next day. "Sunday" is defined as the 24 hours of Sunday except that if a detail begins on Sunday it shall be paid at Sunday rate until its conclusion even if it continues until Monday (including scheduled work). Excluded from this provision are emergency and Sunday details performed on behalf of the City (including the school department), the payment of which is credited against the municipal budget. Included in this provision are emergency and Sunday details performed on behalf of the Peabody Municipal Light Plant, but no administrative fee shall be charged.
4. In the event a detail is performed for a labor dispute, officers shall receive double time the detail rate set forth in paragraph #1 above. A "labor dispute" shall mean a strike, lockout or informational picketing at the location of the detail.
5. All details shall be guaranteed a minimum of four (4) hours per detail if the employee works less than four (4) hours. All details shall be guaranteed a minimum of eight (8) hours per detail if the employee works over five (5) but less than eight (8) hours. If the officer works a detail for eight (8) hours or more, the officer shall receive time and one-half the detail rate set forth in paragraph #1 above, hour by hour.
6. Notwithstanding the foregoing provisions, details performed for Peabody School Department related functions, including but not limited to school student sponsored functions, sporting events, college nights, etc., shall be compensated at the detail rate set forth in paragraph #1 above.

SETTLEMENT AGREEMENT

Peabody Police Benevolent Association
Massachusetts Coalition of Police
Local 351, AFL-CIO

Grievance #13-01
Jury Duty Grievance

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, in June, 2013, a dispute arose over compensation when Peabody police officers are called for jury duty; and

WHEREAS, the Union filed a grievance on June 26, 2013 regarding the jury duty of Officers Leo Cunha and Justin Cecil; and

WHEREAS, the parties wish to settle the grievance without further litigation;

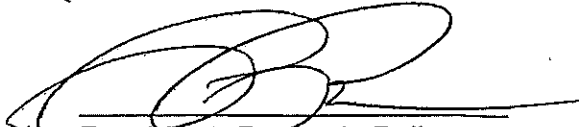
NOW, THEREFORE, the Union and the City agree as follows:

1. The Standard Operating Procedure for jury duty shall be as follows:
 - a. Any officer notified to serve Jury Duty for the Commonwealth of Massachusetts shall notify his/her commanding officer and provide a copy of the notification to appear for jury upon receiving notification.
 - b. All officers regardless of current shift assignment shall be TDY to Jury Service for the entire day and subsequent days if chosen for jury duty. Replacement for optimum staffing is authorized due to the TDY to Jury Duty.
 - c. Officers notified to serve Jury Duty on their days off are not subject to TDY or Compensation for Jury service while off duty.
 - d. Officers are not authorized department transportation for jury duty service.
2. The Office of Jury Commissioner Regulation IV as per M.G.L. c. 234A, section 8 shall be followed as set forth below:

- a. A juror's primary obligation is to perform juror service. A juror must be free from compulsory non-jury work assignments insofar as any such assignment might interfere with the juror's availability, effectiveness or peace of mind. A juror must refrain from any activity which might interfere with his or her effectiveness as a juror.
 - b. An Officer selected for jury service shall not work nor shall he or she be required to work beyond midnight on the day preceding his or her first day of juror service.
 - c. An Officer selected for a trial shall not work nor shall he or she be required to work a night shift during his or her term of juror service.
 - d. Any Officer released early from juror service shall not be eligible to work in any capacity during the eight hours of being TDY to Jury service; i.e. details, overtime.
3. Officers Leo Cunha and Justin Cecil shall be compensated with one day time due each.
4. The Union shall withdraw the jury duty grievance (#13-01) filed on behalf of Officers Cunha and Cecil.
5. The signatories to this Agreement are authorized to bind their principals.

Entered into this 27 day of January 2014.


Mayor, City of Peabody


President, Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO


Chief of Police, City of Peabody

SETTLEMENT AGREEMENT

Peabody Police Benevolent Association
Massachusetts Coalition of Police
Local 351, AFL-CIO

Grievance #13-02
Officer In Charge Grievance

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, in July, 2013, a dispute arose over the assignment to Officer In Charge ("OIC) in the event a Lieutenant is unavailable to work; and

WHEREAS, the Union filed a grievance on July 26, 2013 regarding the assignment of Sergeants to work on overtime in the event a Lieutenant was unavailable to work. .

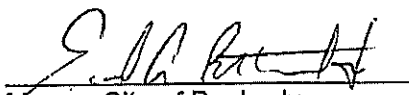
WHEREAS, the parties wish to settle the grievance without further litigation;

NOW, THEREFORE, the Union and the City agree as follows:

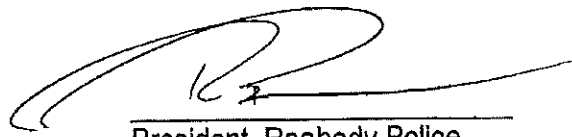
1. When a regularly assigned Lieutenant is absent and there are two Sergeants regularly assigned to the shift, the senior Sergeant shall be assigned the duties of Watch Commander and be compensated at the rate of a Lieutenant.
2. When a regularly assigned Lieutenant is absent and there is one Sergeant regularly assigned to the shift, all other Lieutenants shall be offered overtime to fill the vacancy and be assigned the duties of Watch Commander. In the event no Lieutenant is available to work, then all Sergeants shall be offered overtime to fill the vacancy. In the event no Lieutenant or no Sergeant is available to work, all Captains shall be offered overtime to fill the vacancy and be assigned the duties of a Watch Commander. In the event no Lieutenant, Sergeant or Captain is available to work, a Lieutenant can be forced to work in inverse order of seniority.
3. The Union shall withdraw the Officer In Charge grievance (#13-02) filed on behalf of Peabody Police Sergeants.

4. The signatories to this Agreement are authorized to bind their principals.

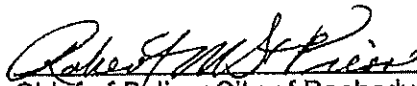
Entered into this 11th day of Feb. 2014.



Mayor, City of Peabody



President, Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO



Chief of Police, City of Peabody

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, The Union and the City entered into a settlement of a grievance pending arbitration on February 2, 1999 involving crosswalk assignments in Peabody Square (Settlement); and

WHEREAS, the Settlement permitted the grandfathering of a non-bargaining unit employee, Ronald Brown (Brown) to perform such crosswalk duties; and

WHEREAS, the Settlement makes certain provisions for the replacement of Brown if he is absent; and

WHEREAS, Brown may be unable to perform the crosswalk duties in the Peabody Square from time to time; and

WHEREAS, the Union and the City desire to modify the terms of the Settlement during Brown's absences;

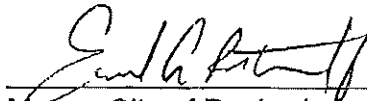
NOW, THEREFORE, the parties agree as follows:

1. An assignment to the Peabody Square (Area 14) within the Traffic/Special Operations Division shall be available and posted for all patrol officers.
2. The position will include alternative methods of patrol of the area including motorcycle, bicycle and walking beat. The focus of the assignment will be the proactive directed patrol of the Peabody Square area and associated locations and properties, and will also include the manning of the crosswalk from 1100 to 1300 hours daily, along with speed monitoring and parking enforcement. It shall also include continuous interactions with residents and merchants for the purpose of dealing with their concerns and issues, as well as developing intelligence relative to the activities in

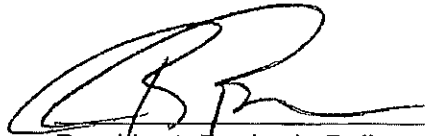
the area.

3. Notwithstanding Article XIX, Section 2 of this Agreement, the parties agree without precedent or practice that the posted assignment as described herein shall be established on a 5 and 2 schedule rather than a 4 and 2 schedule.
4. In the event the employee awarded the assignment described herein is absent, the six areas other than Peabody Square shall be manned first with the Peabody Square area being the last to be filled. The Chief shall thereupon have the following discretionary options to: 1) hire another officer on overtime for a minimum of 4 hours to fill the vacancy; 2) reassign an officer already working traffic to the Peabody Square assignment; or 3) leave the Peabody Square assignment unfilled. In no event shall a patrol officer be reassigned to fill the Peabody Square vacancy.

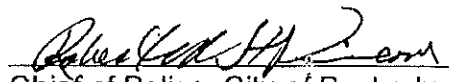
Entered into this 7 day of Feb., 2014.



Mayor, City of Peabody



President, Peabody Police
Benevolent Association,
MCOP Local 351, AFI-CIO



Chief of Police, City of Peabody

overtime.

4. Every member of the department, who is a member as of February 2, 1999, shall be credited with one eight hour compensation day, excluding members of the Captains' Association.

5. The Association hereby withdraws the arbitration of the Brown grievance.

2/2/99 For the City

Daniel B. Kulak s/
Robert Champagne s/

For the Association

Many Costa, President s/
Robert L. Wise, Counsel s/

PEABODY POLICE DEPARTMENT

TO: Officer Ronald Brown
FROM: Chief Robert L. Champagne
DATE: March 4, 1999

Effective immediately the following duties will be in effect for the Crosswalk at "Brothers" and other duties assigned this position:

CROSSWALK OFFICER DUTIES

1. Crosswalk duty at "Brothers" Crosswalk
2. Issue parking tickets from Park Street, both sides of Main Street west to Peabody Square (Main @ Foster)
3. Area Car 1 shall be responsible for appropriate violation notice/tagging when no walking area 14 is assigned
4. Four (4) days per week work schedule (Mon - Thurs)
5. Retired Officer Ronald Brown is assigned such
6. The Department will, within budgetary constraints, make every effort to fill such duty on Fridays.

RLC:nad

cc: P.P.E.A.
Capt. MacGregor - Central Commander
Lt. Carriere - 2nd Watch Commander
Sgt. Cohan - Special Services

American Arbitration Association

On the Month of

AAA 11 390 01475 97

Peabody Police Assistant Association
and
City of Peabody

Mr. Brown -
Peabody Unit Work

The City of Peabody and the Peabody Police
Benevolent ~~Association~~ Association hereby
agree to resolve the grievance
in case # AAA 11 390 01475 97 as
follows:

1. Ronald Brown ^{who is hereby granted the status of a} will, in addition ^{only non bargaining unit employee} to his cross walk duty at the
"Brothers" crosswalk, issue
parking tickets within the
area of Park Street along
both sides of Main Street
to Peabody Square

2. When Brown is absent due
to vacation, sick time, or
other days off Monday through
Friday, the six men active
at the Square shall be

maned first with the ^(elementary) squad area being last to be filled. In the event Officer Brown needs to be replaced, at the option of the City, a member of the Traffic unit (Special Services) or overtime may be utilized. ~~to fill~~

3. The Chief, shall, ~~at all times~~, make every effort, ~~to~~ within budgetary constraints, to fill the Brown's vacant position at overtime.

4. Every member of the Department, who is a member as of February 3, 1999, shall be credited with one eight hour compensatory day, ~~excluding~~ member of the Captains' Association

5. The Association hereby withdraws the inclusion of the Brown's provision

1999 For the City
 Daniel B. Kukulski
 Daniel Kukulski

For the Association
 m-e g c. President
 Robert L. Wise, Counsel

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, Article XII, Section 2 (D) of the Agreement states as follows: "A member of the Police Department assigned to duties of Juvenile Safety Officer, shall be placed in Grade 16"; and

WHEREAS, questions have arisen over whether the specialist payment set forth in Article XII, Section 2 (D) should be interpreted to apply to any officer assigned as School Safety Officer or School Resource Officer, and

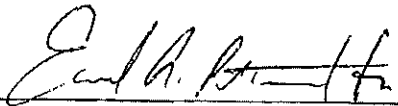
WHEREAS, the City and the Union wish to clarify Article XII, Section 2 (D) of the Agreement in order to address questions about the interpretation of Article XII, Section 2 (D);

NOW, THEREFORE, the parties agree as follows:

1. Article XII, Section 2 (D) shall be interpreted to allow more than one assignment to Juvenile Safety Officer.
2. A "Juvenile Safety Officer" as provided in Article XII, Section 2 (D) of the Agreement shall be synonymous with "School Safety Officer" and "School Resource Officer," and such assigned officers shall receive Grade 16 compensation.

3. The signatories of this Agreement are authorized to bind their principals.

Entered into this 7 day of Feb, 2014.


Mayor, City of Peabody


President, Peabody Police
Benevolent Association,
MCOP Local 351, AFI-CIO


Chief of Police, City of Peabody

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL- CIO

and

Peabody Police Captain's Association,
Massachusetts Coalition of Police
Local 346, AFL-CIO

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (PPBA) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (PPBA Agreement); and

WHEREAS, the Peabody Police Captain's Association, Massachusetts Coalition of Police Local 346, AFL-CIO (PPCA) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (PPCA Agreement); and

WHEREAS, the PPBA and PPCA Agreements provide for identical drug testing provisions pursuant to Article XXIX and Attachment A of the PPBA Agreement and Article XXIV and Appendix B of the PPCA Agreement; and

WHEREAS, ever since the drug testing process began in 2009, there have been numerous questions and grievances regarding the proper administration of drug testing for Peabody police officers; and

WHEREAS, on or about November 21, 2013, the Peabody Police Chief, Robert M. St. Pierre, became aware of the problems surrounding the administration of the drug testing process; and

WHEREAS, on November 21, 2013, Chief St. Pierre issued a memorandum (13-29) temporarily suspending the drug testing program until he had the opportunity to explore the problems with representatives of the testing agency, the PPBA and the PPCA; and

WHEREAS, on January 14, 2014, all parties met to discuss the process used in the collection of samples, the system used to make the random selections, the

confidentiality of the testing process and the frequency of random testing in the future; and

WHEREAS, the City, the PPBA and the PPCA wish to clarify the drug testing procedures set forth in the PPBA and PPCA Agreements in order to address a number of questions and to avoid grievances and any further litigation;

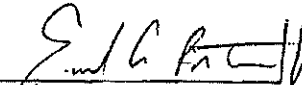
NOW THEREFORE, the City, the PPBA and the PPCA agree as follows:

1. The random drug testing process will be applicable to one pool of employees that includes all members of the PPBA, all members of the PPCA, all Deputy Chiefs of the Peabody Police Department and the Peabody Chief of Police. Henceforth, two pools of employees shall no longer be used for the random drug testing.
2. Random drug testing shall be administered on-site at the Peabody Police Department by a vendor mutually agreeable to the parties (currently Concentra) no more than three times each year. In the event any of the parties desire to change vendors for random drug testing, all parties shall meet to discuss the reasons for the change and, if necessary, select a new vendor.
3. The City of Peabody Police Department's Payroll Clerk shall send a complete and updated roster to the vendor the first day of every fourth month by e-mail.
4. The vendor will utilize a randomization form that will assign every employee on the roster an employee identification number. The vendor will select nine (9) employee identification numbers to submit to a drug testing. There will be only one list of nine (9) officers and no alternate list.
5. Upon selection of nine (9) employee identification numbers, the vendor will inform the Peabody Police Chief's office of the nine (9) selected numbers.
6. The Chiefs office shall confidentially provide the identification numbers to the appropriate Watch Commander.
7. The Watch Commander shall then notify the selected officers by telephone and assign a time for the officer to be drug tested. Care shall be taken by the Watch Commander to assign times for officers so that they will not come in contact with each other at the testing site. The list of officers selected for testing shall not be available for viewing by the tested officers or at the testing site.
8. If the selected officer is not scheduled to work when the test is being administered, the City shall have the following options: 1) chose not to test the officer; 2) call back the officer on overtime at the contractual minimum if the

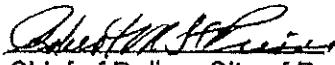
officer is available; or 3) have the officer tested when he returns to work either on-site or at the vendor's facility. In the event the officer is to be tested upon return to duty at the vendor's facility, the officer shall be permitted to use a Department vehicle to travel on work time to and from the facility. If one officer is later tested under this paragraph, then all other selected officers not scheduled to work shall also be tested by either option 2 or 3 above.

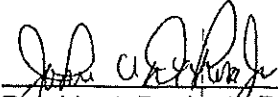
9. Officers selected for the drug test shall provide proper identification to the testing technician. Prior to the drug testing, the officer shall be allowed (but not required) to provide a confidential written statement as to whether the officer is using any prescription drugs, or over-the-counter medication, or has undergone any recent medical procedure.
10. Technicians in training shall not conduct a drug test for any of the selected officers. The technicians will provide written guidelines to the officer on the process of hair sample testing. Officers shall provide hair samples to a trained technician in accordance with those guidelines in a secure room with locked doors. Care shall be taken at the end of each individual test to clean the area of any loose hairs or evidence of prior tests.
11. In the event the City becomes aware that the vendor for random drug testing is unable to comply with any of the procedures outlined above or otherwise modifies their procedures, the City shall notify the PPBA and the PPCA prior to any change so that this Agreement can be revised, if necessary.
12. Since the above paragraphs 1-11 are intended to clarify the drug testing provisions set forth in the PPBA and PPCA Agreements, these paragraphs shall supersede any conflicting provisions of those Agreements. Otherwise, the terms of the PPBA and PCBA Agreements shall be enforceable as negotiated between the parties.
13. In the event any officer files a complaint with either the PPBA or the PPCA regarding the administration of random drug testing for said officer, the respective union shall be given the opportunity to review the particular testing process with the Chief of Police.
14. The PPBA shall withdraw any pending grievances over the drug testing procedures.
15. The signatories to this Memorandum of Agreement are authorized to bind their principals.

Entered into this 10 day of February 2014.


Mayor, City of Peabody


President Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO


Chief of Police, City of Peabody


President, Peabody Police
Captain's Association,
MCOP Local 346, AFL-CIO

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, the Union and the City are subject to an arbitration award issued on January 10, 1997 (Award) by Arbitrator Roberta Golick regarding an enforceable practice under Article XXVII, Section 2 of the Agreement of permitting officers to swap shifts under appropriate circumstances; and

WHEREAS, Arbitrator Golick ruled that a numerical restriction on the number of swaps per year was unenforceable, but there can be reasonable administrative procedures regarding the availability of swaps; and

WHEREAS, after Arbitrator Golick's arbitration award, questions have arisen over the administrative procedures for shift swapping by Peabody police officers; and

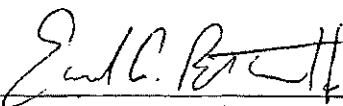
WHEREAS, the City and the Union wish to clarify how officers are able to swap shifts in conformance with Article XXVII, Section 2 of the Agreement and the Award;

NOW, THEREFORE, the parties agree as follows:

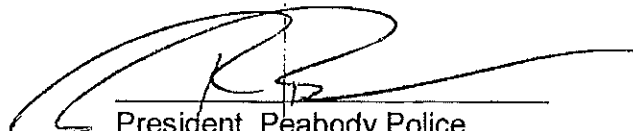
1. The number of swaps for an officer shall not be restricted per year provided the officer follows the procedures set forth herein.
2. All requests for approval of swaps shall be made in writing to Watch Commanders without any minimum notice period. Officers do not have to use any other earned leave time in order to be eligible for a swap.
3. Officers of equal rank and qualification, including training, may swap assignments.

4. Watch Commanders shall sign off on all requests for swaps noting their approval in writing.
5. Watch Commanders shall not approve more than four consecutive duty swaps.
6. Division Commanders will sign off on all swaps noting their approval in writing.
7. It shall be the duty of the officer actually working the swap to be present for such assignment. He/she shall not use any accumulated or other time to not be present. In the event that a swap is approved from watch to watch, it shall be the duty of the Watch Commander initiating the swap to notify and receive the approval of the other Watch Commander.
8. Swaps from division to division or unit to unit shall require the additional endorsement of the Chief of Police.
9. Swaps will be paid back within 90 days. It shall be the responsibility of the officer requesting a swap to inform the Watch Commander and the swapping officer of the pay back date. The swapping officer does not have to indicate the day of the swap at the time the swap is approved.
10. The attached "Peabody Police Department Time Off/Swap Requests" form shall be utilized in requesting and receiving approval for swaps.

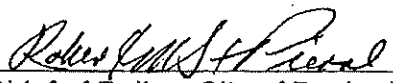
Entered into this 7 day of Feb., 2014.



Mayor, City of Peabody



President, Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO



Chief of Police, City of Peabody

Peabody Police Department

TIME OFF/SWAP REQUEST

WATCH PATROL

Date of Request:

I, , request the following shift(s) off- date(s):

☐ Birthday ☐ Personal Time ☐ Single Vacation ☐ UBTD ☐ SWAP ☐ Work Adjustment

Request approval of shift swap:

Officer A: is requesting a shift swap with

Officer B: for the date of:

Number of Hours:

With a payback date of work (WITHIN 90 DAYS OF REQUEST):

☐ Approved

Date Entered into IMC

☐ Denied

Reason Denied:

Watch Commander/OIC Signature:

Both Officers' entries for SWAPS must be noted in the IMC comment section.

Original to Payroll Office

Cc: Deputy Chief Carriere/Watch Commander/Division Commander

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, the Agreement sets forth rules and procedures for the distribution of extra work details; and

WHEREAS, in 2001, the parties mutually agreed to changes in the rules and procedures for the distribution of extra work details and such changes were enumerated in the Peabody Police Department's Administrative Procedure 10.0 effective August 15, 2001; and

WHEREAS, the parties neglected to modify the rules and procedures contained in the Agreement to conform with the 2001 changes made in the Administrative Procedure 10.0; and

WHEREAS, the assignment of details has been operating according to the Peabody Police Department's Administrative Procedure 10.0 since 2001; and

WHEREAS, questions have arisen over the language of the Peabody Police Department's Administrative Procedure, the practices that have developed in the assignment of details since 2001, and the outdated language of the Agreement for the distribution of extra work details; and

WHEREAS, the Union and the City wish to clarify the Agreement to substitute and specify the practices developed under the Peabody Police Department's Administrative Procedure 10.0 since 2001;

NOW, THEREFORE, the parties agree to delete Sections A, D (Special Rules) and E (General Rules) contained in Article XIII, Private Job/Details of the Agreement and substitute the following:

"A. All extra work details including work for the City shall be paid and distributed among the regular members of the Department in accordance with the following provisions of this article.

"D. Special Rules

1. Details are a benefit to be enjoyed by all members of the Peabody Police Department irrespective of rank or longevity. The distribution of details for the department will be the responsibility of the assigned detail Sergeant. A separate master list for detail distribution shall be created and maintained by the detail Sergeant. The detail Sergeant shall control the master list and shall be responsible for the fair and equitable opportunity for hiring in accordance with these rules.
2. Details are to be filled regardless of rank at the rate of pay established as set forth in Section B of this Article. There are no rank specific jobs.
3. There are no permanent assignments to particular details.
4. The master list will zero out on April 1st of each year.
5. The master list and the detail sign up board will be posted Wednesday of each week.
6. The detail master list upon inception shall list all officers in order of seniority. The list will then change maintaining the total of hours worked by each officer. Officers with the lowest hours shall be at the top of the list.
7. The detail sign up board shall consist of a daily list of all available details (regular and reoccurring) for the following week.
8. All officers may sign for multiple details each week on the detail sign up board, indicating their preference by placing 1st choice, 2nd choice, etc. Officers may place their name in as many detail slots as desired.
9. On Wednesday of each week, the detail Sergeant shall remove the detail sign up board for the following week and shall assign all available details. The officer with the lowest hours shall be given his/her first preference for one detail that week. Then the officer with the next highest hours shall be given his/her highest preference for one detail that week, and so on, until all officers on the board have received one detail in accordance with their preferences. The process shall thereupon start over with the officer who has the lowest hours and any remaining preferences for a second detail that week, and so on, until all details on the sign up board have been distributed. This procedure shall not be interpreted to allow

an officer with the lowest hours to automatically have as many details as he/she wants for the week.

10. The daily list will contain a section for officers who wish to be available for additional details such as emergency or daily call ins. After assignment of the regular and recurring details from the sign up board, the detail Sergeant shall distribute emergency and last minute details using the availability list. For emergency and daily call ins, officers with the least amount of hours shall be first assigned from the availability list. The detail Sergeant shall post the availability list indicating order of officers to be called for emergency and last minute details.
11. All requests for private details will be reported to the detail officer or the OIC in writing through the department request form.
12. If two or more officers request to work the same detail and are tied in total hours, the detail shall be assigned to the officer with the most seniority. If an officer accepts a detail, the officer is responsible for the entire detail. However, details in excess of four hours may be split. Both officers must submit detail slips indicating hours worked.
13. Once a detail has been assigned it should not be turned in. If an officer must turn in the assigned detail, he/she will receive four hours added to his/her total details hours. However, officers notified of a court appearance after being assigned a detail shall submit a copy of the court slip to the detail officer and the detail shall be reassigned without adding any hours to the officer's detail total.
14. Swaps of details are not permitted.
15. Officers on vacation are eligible to work details.
16. If any officer is out on sick leave, the officer shall not be allowed to work a private detail until at least 24 hours have passed since the start of the officer's last sick shift.
17. All officers shall submit the gold copy of the completed detail slip to the detail Sergeant by placing it in the box located near the payroll office. The detail Sergeant shall monitor and adjust the total of all detail hours worked. All other copies shall be forwarded to the appropriate person.
18. The detail officer shall make all entries into the computer. The detail officer will preserve each weekly detail list, and a copy will be made available to the President of the Peabody Police Benevolent Association. The payroll office will

file the original copy.

19. As a reminder according to the contract, no more than 16 hours may be worked in a 24 hour period.
20. Officers on leave of duty for 30 days or more or newly sworn officers shall notify the detail officer and will be placed in the middle of the master detail list, by averaging the highest and lowest hours of opportunity for all officers on the current master list. This provision shall not apply to officers on leave due to an injury on duty.
21. All detail rules and regulations shall be strictly enforced.
22. Any violation of the detail rules will result, (after investigation, by the assigned department detail officer), in a member's suspension for two (2) weeks plus (20) hours added to the officers total hours.
23. If the detail officer/ makes an assignment error, the remedy shall be to give the aggrieved officer his/her first choice of details on the following week. Second or subsequent offenses shall be reported to the Chief of Police.
24. If any officer who feels that they are aggrieved by a violation of the above, he/she should see the detail officer or the President of the Peabody Police Benevolent Association. All complaints will be investigated by the detail officer and the President of the Peabody Police Benevolent Association to arrive at a joint decision which shall be final and shall not be subject to the Grievance Procedure set forth in Article III of the Agreement.
25. The uniform for extra details will conform to the "Uniform of the Day" for Patrol Division unless special instructions from the Assignment Officer provide for a different uniform.
26. Officers who work extra details are subject to the Regulations of the Department while on such details and the Patrol Supervisor is required to make periodic supervisory checks of extra details within his/her area.
27. All changes in the manning of the details must be reflected on the assignment board.
28. In case an officer is not able to cover an assigned detail, he must notify the Assignment Officer. "Private" details in uniform without the detail officer's approval are strictly prohibited.

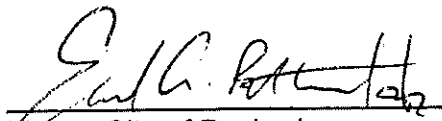
29. The detail officer shall attempt to contact all personnel for details by the Peabody Police Department's paging system.

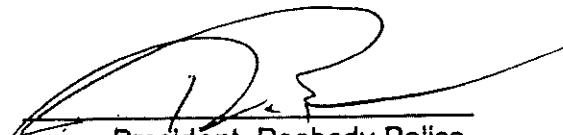
30. Officers shall be allowed to work out of Town detail jobs after all Peabody Police Department jobs are filled first.

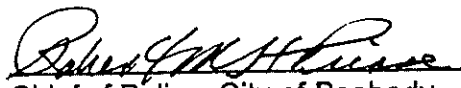
31. The City will use its best efforts to make payment to employees who work details within twenty-one (21) days following the performance of the details; provided, however, the City shall guarantee to make payment to an employee for working a detail no later than thirty-five (35) days following the performance of the detail as long as said employee has submitted a detail slip stating that the employee in fact performed the detail for which payment is requested.

32. The parties agree to meet to review any matter relating to details at the request of either party."

Entered into this 11 day of February 2014.


Mayor, City of Peabody


President, Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO


Chief of Police, City of Peabody

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement) and;

WHEREAS, the parties have executed a Side Letter of Agreement that revised Section B of Article XIII, Private Job/Details in the Agreement (see attached); and

WHEREAS, Peabody police officers on occasion work details in other communities after any available Peabody details are filled; and

WHEREAS, Peabody police officers working details in other communities are normally paid at the detail rate applicable in the other community rather than the Peabody detail rate; and

WHEREAS, there appears to be one community where Peabody police officers are paid the Peabody detail rate when they perform details in the other community rather than the rate applicable in that community; and

WHEREAS, the parties desire uniformity in detail rate payments when Peabody police officers work details in outside communities;

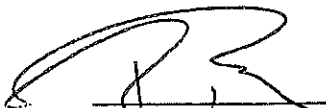
NOW, THEREFORE, the parties agree as follows:

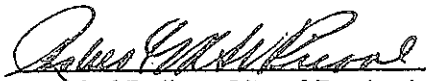
1. Article XIII, B of the Agreement shall be further revised to add the following:

"7. Officers shall be allowed to work out of town detail jobs after all Peabody Police Department jobs are filled at the time an out of town job becomes available. In the event an officer works an out of town detail, the officer shall be paid at the rate established and paid in the other community."

2. The signatories of this Agreement are authorized to bind their principles.


Mayor, City of Peabody


President, Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO

 6/11/14
Chief of Police, City of Peabody



PEABODY POLICE

MEMORANDA

14-MEMO SYSTEM - 21

DATE OF ISSUE

06-11-14

EFFECTIVE DATE

06-11-14

SUBJECT: Memorandum of Agreement

ISSUING AUTHORITY:

Robert M. St. Pierre

REFERENCE(S): CALEA

PAGE

1

☒ NEW ☐ AMENDS ☐ RESCINDS

TO: All Officers

FROM: Chief Robert M. St. Pierre

With the approval of Mayor Edward A. Bettencourt, I have negotiated with the Peabody Police Benevolent Association a memorandum of agreement relevant to the new out of town detail rates.

Effective immediately, Officers shall be allowed to work out of town detail jobs, after all Peabody Police Department jobs are filled, at the time an out of town job becomes available. In the event an officer works an out of town detail, the officer shall be paid at the rate established and paid in the other community.

I wish to thank President Richard Rose and members of the PPBA for their cooperation in resolving this matter.

Enc. Memorandum of Agreement (Detail Rates)

Cc: Mayor Edward A. Bettencourt, Jr.
Nancy Delaney, Payroll
Cara Lariviere, Detail Billing

RSP/jmf

Memorandum of Agreement

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, Article XIX, Work Shifts, Work Week, Work Schedule of the Agreement provides for a standard work schedule for employees of four days on and two days off with specified employee exceptions who work five days on and two days off; and

WHEREAS, the parties desire to amend the list of exceptions to the four and two schedule by adding an additional employee who may be assigned to Elder Affairs;

NOW, THEREFORE, the parties agree as follows:

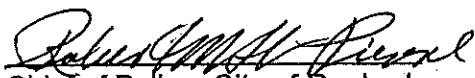
1. Article XIX, Work Shifts, Work Week, Work Schedule, Section 2, Work Schedule, Day-Off Schedule of Employees (B) shall be amended to add the following at the end of the 12 listed categories of employees who are exempt from the regular "4 and 2" schedule for assignment to a "5 and 2" schedule:

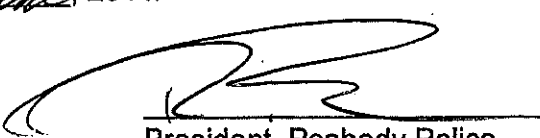
"(13) One employee assigned to Elder Affairs"

2. The signatories of this Agreement are authorized to bind their principals.

Entered into this 13 day of June, 2014.


Mayor, City of Peabody


Chief of Police, City of Peabody


President, Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO



Peabody Police

6 ALLEN'S LANE
PEABODY, MASSACHUSETTS 01960



ROBERT M. ST. PIERRE
CHIEF OF POLICE
(978)-538-6308

"It's About Teamwork"

E-mail: mail@peabodypolice.org
Website: www.peabodypolice.org
Fax: (978) 538-6335

June 23, 2014

Officer Richard Rose, President
Peabody Police Benevolent Association
6 Allen's Lane
Peabody, MA 01960

**RE: Peabody Police Benevolent Association
Transfer of Officers without Precedent**

Dear President Rose:

The City of Peabody and the Peabody Police Department are committed to maintaining the proper levels of patrol coverage on each shift in order to adequately protect citizens and visitors in Peabody and to insure the safety of police officers who are called upon to respond to emergencies in the City. As you know, when minimum patrol staffing is diminished on a given shift due to leave time or other reasons, the department hires officers and/or supervisors on overtime in order to fill the gap.

In the first few months of 2014, there were a number of occasions when patrol and supervisor vacancies occurred which brought the manning below minimum levels, but the department decided not to fill those vacancies on an overtime basis. Instead, traffic personnel, the elder affairs officer or supervisors were transferred from their regular special assignments to satisfy the requisite patrol coverage. At the time, I felt it was necessary to conserve on overtime spending because I was concerned that the department's budget could run short before the end of fiscal year 2014.

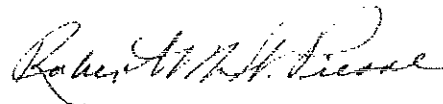
When the department began transferring officers and supervisors instead of hiring back on overtime, you pointed out that it was premature to think that the department would go over budget a number of months in the future. You also indicated that the PPBA could have grieved the change in practice of offering overtime when filling necessary patrol vacancies.

Nevertheless, you decided not to file a grievance or any other legal challenge to the transfers in question as long as there is an understanding that the change should not be considered a precedent for the future.

This letter constitutes the department's assurance to the PPBA that the limited transfers of traffic personnel, the elder affairs officer and supervisors to cover patrol vacancies during fiscal year 2014 shall not be considered by the City or the Department as an established past practice or precedent in the future. I appreciate your willingness on behalf of the PPBA to make a few exceptions to the required method of filling minimum patrol coverage by overtime.

Thank you for your cooperation in this matter.

Yours truly,

A handwritten signature in cursive script, appearing to read "Robert M. St. Pierre".

Robert M. St. Pierre
Chief of Police

RSP/jmf

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

And

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, Article XII, Section 2, Specialist Pay of the Agreement sets forth Specialist assignments and compensation; and

WHEREAS, the City and the Union have from time to time amended Section 2 of Article XII to expand the number of Specialist assignments; and

WHEREAS, the City and the Union wish to add an additional Specialist assignment to Article XII, Section 2 and to clarify the bidding of Specialist assignments in the future.

NOW THEREFORE, the parties agree as follows:

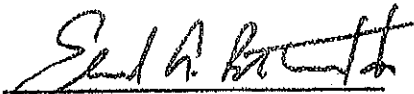
1. Article XII, Section 2 shall be amended to add a new section (F) to read:

"(F) A member of the Police Department assigned the duties of Community Policing North Shore Mall Liaison Officer shall be placed in Grade 16.

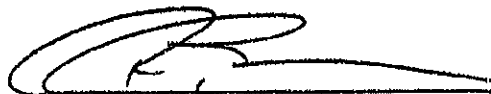
(G) In the event there are vacancies in any of the above positions, they will be open for bid to all patrolmen with the right of assignment being the sole discretion of the Chief of Police."

2. The signatories of this Agreement are authorized to bind their principals.

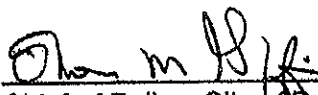
Entered into this 14 day of OCTOBER, 2014



Mayor, City of Peabody



President, Peabody Police
Benevolent Association
MCOP Local 351, AFL-CIO



Chief of Police, City of Peabody

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

And

City of Peabody

WHEREAS, The Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement, effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, Article XII, Wages, sets forth compensation for members of the bargaining unit covered by the Agreement including training and responsibility for new duties; and

WHEREAS, the City and the Union wish to add an additional duty to members of the bargaining unit involving the administration of nasal narcan;

NOW THEREFORE, the parties agree as follows:

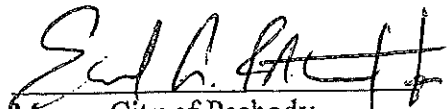
1. Article XII, Wages, shall be amended to add a new Section 10 to read:

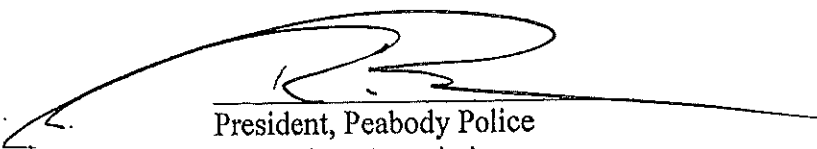
“Section 10. Narcan Training

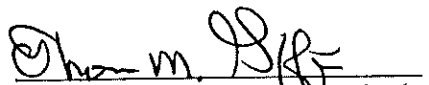
Effective January 1, 2015, all members of the bargaining unit shall receive annually an 8-hour TD (time due) for accepting the added duty of administering nasal narcan. The parties agree to work together to develop medical protocols and a Police Department policy for the use of nasal narcan when on duty. Once completed, all officers shall be trained pursuant to the Police Department’s narcan policy. Effective July 1, 2015, all members of the bargaining unit shall receive annually an additional \$300 stipend to be added to the pay rates contained in Article XII, Section 1.”

2. The signatories of this Agreement are authorized to bind their principals.

Entered into this 17th day of December 2014.


Mayor, City of Peabody


President, Peabody Police
Benevolent Association
MCOP Local 351, AFL-CIO


Chief of Police, City of Peabody

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

And

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2012 to June 30, 2015 (Agreement); and

WHEREAS, Article XII, Section 2, Specialist Pay of the Agreement sets forth Specialist assignments and compensation; and

WHEREAS, the City and the Union have from time to time amended Section 2 of Article XII to expand the number of Specialist assignments; and

WHEREAS, the City and the Union wish to add an additional Specialist assignment to Article XII, Section 2;

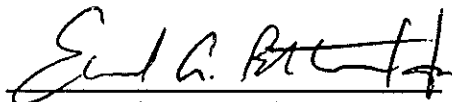
NOW THEREFORE, the parties agree as follows:

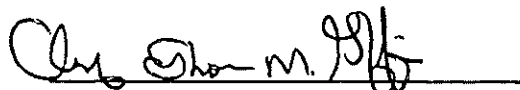
1. Article XII, Section 2 shall be amended to add a new section (H) to read:

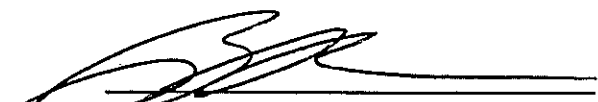
"(H) A member of the Police Department assigned the duties of Weapons R&D and Maintenance Specialist shall be placed in Grade 16.

2. The signatories of this Agreement are authorized to bind their principals.

Entered into this 3rd day of December, 2014


Mayor, City of Peabody


Chief of Police, City of Peabody


President, Peabody Police
Benevolent Association
MCOP Local 351, AFL-CIO

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2015 to June 30, 2018 (Agreement); and

WHEREAS, the Agreement sets forth rules and procedures for the distribution of extra work details; and

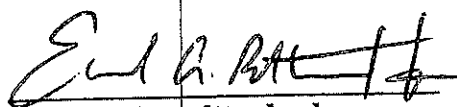
WHEREAS, the Union and the City entered into a Memorandum of Agreement dated February 11, 2014 to update the rules and procedures for the distribution of extra work details; and

WHEREAS, the Union and the City wish to further clarify their Agreement on the rules and procedures for the distribution of details;

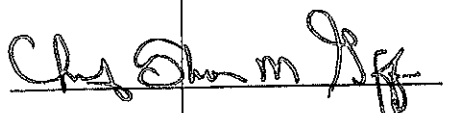
NOW, THEREFORE, the parties agree to amend Article XIII, Private Job/Details, Section D, Special Rules by deleting number 9 and substituting the following:

"9. On Wednesday of each week, the detail officer shall remove the detail sign up board for the following week and assign all available details on the basis of the lowest number of hours."

Entered into this 31st day of October 2017.


Mayor, City of Peabody


President, Peabody Police
Benevolent Association, MCOP
Local 351, AFL-CIO


Chief of Police, City of Peabody

MEMORANDUM OF AGREEMENT

Peabody Police Benevolent Association,
Massachusetts Coalition of Police
Local 351, AFL-CIO

and

City of Peabody

WHEREAS, the Peabody Police Benevolent Association, Massachusetts Coalition of Police Local 351, AFL-CIO (Union) and the City of Peabody (City) are parties to a collective bargaining agreement effective July 1, 2015 to June 20, 2018 (Agreement); and

WHEREAS, Article VII, Overtime Rates, Section 1 states that overtime pay will be compensated at time and one-half the hourly rate as may be required by General Laws, Chapter 147, Section 147C; and

WHEREAS, the City and the Union amended the Agreement on May 30, 2014 to add a new Section 6 in Article VII to allow each employee to accrue compensatory time up to a maximum of forty (40) hours; and

WHEREAS, the City and the Union wish to further amend the Agreement to provide for additional compensatory time off in lieu of overtime pay;

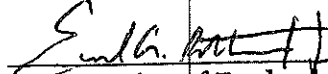
NOW, THEREFORE, the parties agree as follows:

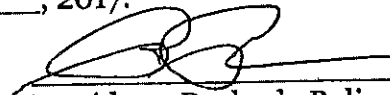
1. Article VII, Overtime Rates shall be amended to revise Section 6 to read as follows:

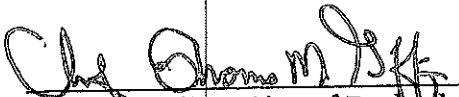
"Section 6. Compensatory Time. In lieu of overtime pay as set forth in Section 1 of this Article, each employee is allowed to accrue compensatory time at the rate of time and one-half for each hour worked up to a maximum of eighty (80) hours. The accrual of compensatory time shall be subject to the current Department practice of allowing no more than 3 officers off (excluding court) from each division. Compensatory time shall not be given for court appearances except in accordance with present practice. Accrued compensatory time shall be used by the end of each calendar year."

2. The signatories of this Agreement are authorized to bind their principals.

Entered into this 31st day of October, 2017.


Mayor, City of Peabody


President, Peabody Police
Benevolent Association,
MCOP Local 351, AFL-CIO


Chief of Police, City of Peabody

COMMONWEALTH OF MASSACHUSETTS
BEFORE THE LABOR RELATIONS COMMISSION

CITY OF PEABODY

and

PEABODY POLICE BENEVOLENT
ASSOCIATION, MASSACHUSETTS
COALITION OF POLICE, AFL-CIO,
Local 351

CASE NO. MUP-04-4205

SETTLEMENT AGREEMENT

Whereas, the City of Peabody (City) and the Peabody Police Benevolent Association, Massachusetts Coalition of Police, AFL-CIO, Local 351 (Union) wish to settle this unfair labor practice without further litigation, the parties hereby agree as follows in full and fair settlement of this matter:

1. Supervisory staffing on the Second Watch (0800 - 1600 hrs) for the week day period (Monday through Friday) shall be as follows: 1 Lieutenant Watch Commander and 1 Sergeant.

Absent a regularly assigned Lieutenant:

A. Where there are two Sergeants regularly assigned, one of the Sergeants shall be assigned the duties of Watch Commander and be compensated at the rate of a Lieutenant. However, the parties disagree as to whether the senior sergeant will be the watch commander. This issue remains unresolved by this agreement.

B. Where there is one Sergeant regularly assigned, a Lieutenant Watch Commander shall be hired on an overtime basis. Where no Lieutenant can be assigned, either by offering the overtime voluntarily or ordering a Lieutenant in on overtime, a second Sergeant shall be hired on an overtime basis. In this case the regularly assigned Sergeant will be assigned the duties of Watch Commander and be compensated at the rate of a Lieutenant. Any Sergeant who does not receive such out of grade pay consistent with this agreement beginning on Monday June 26, 2006 will receive such out of grade pay retroactive upon execution of this agreement.

2. The regular assignment of a Captain to the shift does not change the supervisory staffing requirement set out in paragraph 1 above. The Chief retains the right to hire a Captain on an overtime basis to act as watch commander, pursuant to the collective bargaining agreement.

3. The current practice of fully staffing each weekend shift will now be done on Friday at 1200 hrs (noon). After that time, only vacancies resulting from the legitimate use of accrued time (i.e. long term sick, injured on duty, time due, work adjustment, comp time, vacation, single vacation, or union business time due) will be fully staffed as set out above.

Should a Lieutenant or a Sergeant assigned to the Second Watch call in sick for the weekend period (Saturday and Sunday) later than 1200 hrs (noon) the previous Friday there will be no obligation to fill the vacancy caused by that sick call beyond the Minimum Staffing level currently outlined in the Memoranda 05-Memo System-93 dated July 22, 2005.

4. The City will pay a total of \$16,000.00, and distribute that amount among certain bargaining unit members who will be identified by the Union in a separate document, which may be drafted after the date of execution of this agreement. This document will be affixed to this settlement agreement as "Exhibit A." The amount to be paid to each member will also be identified by the Union in Exhibit A.

5. The Union agrees that no grievances will arise relating to the issues resolved in this agreement, except as necessary to enforce the terms of the agreement, in which case the agreement will be enforceable through the grievance and arbitration provision in the collective bargaining agreement.

6. The Union will withdraw the charge of prohibited practice in LRC Case No. MUP-04-4205 with prejudice.

7. This agreement will be incorporated into the collective bargaining agreement.

For the City of Peabody:

Michael J. Bonfanti
Date: 11-14-86

For the Peabody Police Benevolent Association,
Massachusetts Coalition of Police, AFL-CIO, Local 351:

[Signature] 11-21-06
Date:

Date:

Date:

Date:

Attachment A

Employee To Be Paid	Amount To Be Paid
Sgt. William Caico	1925
Sgt. Arthur Yeo	3425
Sgt. Steven Marques	1290
Sgt. Albert Lopes	1070
Sgt. Glenn Fredericks	280
Sgt. Robert Conway	660
Lt. John McCorry	1225
Lt. Edward Bettencourt	1225
Lt. Joseph Berardino	1225
Lt. Martin Cohan	1225
Lt. Dennis Bonaiuto	1225
Lt. John DeRosa	1225
Total	16000



PEABODY POLICE

MEMORANDA

06-MEMO SYSTEM - 91

DATE OF ISSUE
12-12-06EFFECTIVE DATE
12-15-06

SUBJECT: STAFFING LEVELS FOR
PATROL - EFFECTIVE DECEMBER 15,
2006

ISSUING AUTHORITY:

REFERENCE(S): CALEA

PAGE
1 of 3
☐ NEW ☐ AMENDS ☐ RESCINDS

TO: All Captains & Lieutenants

FROM: Chief Robert L. Champagne

In compliance with settlement of MUP-04-4205, the following guidelines are issued for staffing levels for Patrol effective 15 December 2006 and until further notice. The below are guidelines for staffing, please adhere to such levels and procedure. This is a reissue of memorandum 02-215 of November 2002. All other memorandum to the contrary are rescinded.

At noontime on Friday of each week, you shall fill all shifts to the optimum staffing level for the weekend shifts that is Friday and Saturday and certain Sundays and Holidays as noted:

1st Watch Optimum Staffing:
 1 OIC (Lieutenant preferred over a Sergeant)
 1 Patrol Supervisor (Sergeant) or 2 Sergeants (when no Lieutenant is available as OIC)
 1 Desk Officer (Patrolman or extra dispatcher)
 5 Area Cars - (Patrolmen)
 1 Directed Patrol Car (Patrolman) as authorized by the Chief
 For 1st Watch, Friday 2400 Hrs., Saturday 2400 Hrs., Sunday 2400 Hrs. (only if a Monday is Holiday)

On Sunday through Thursday:

1 Watch Commander (Lieutenant or Sergeant)
 5 Patrol Officers

You should backfill for officers on vacation, personal time, time due, or extended sick (knowing that such person will be out for four or more days) as of noon on Friday of each week.

-2-

If persons are allowed additional time off after Friday noon, or on all watches if persons of any rank call in sick for a shift, we will not backfill until we go below minimums:

Minimum:

1 Supervisor (Sergeant or Lieutenant)

4 Patrolmen (Street)

1 Desk (who shall also be available to street duty at the discretion and direction of the OIC)

2nd Watch

Monday through Friday:

Full Staffing:

1 Lieutenant and 1 Sergeant or 2 Sergeants (when no Lieutenant is available as OIC)

6 Area Patrolmen

1 Desk (who shall also be available to street duty at the discretion and direction of the OIC)

Saturday and Sunday:

1 Watch Commander (Lieutenant or Sergeant)

6 Patrolmen

1 Desk (who shall also be available to street duty at the discretion and direction of the OIC)

Minimum Staffing:

1 Supervisor (Sergeant or Lieutenant)

5 Areas

1 Desk Officer

3rd Watch

Optimum Staffing:

Friday, Saturday, Sunday (only if Monday is a Holiday)

1 Lieutenant and 1 Sergeant or

2 Lieutenants (if scheduled) or

2 Sergeants (if no Lieutenant is available as OIC)

7 Patrolmen

1 Desk (who shall also be available to street duty at the discretion and direction of the OIC)

Sunday through Thursday:

1 Watch Commander (Lieutenant or Sergeant)

6 Patrolmen

1 Desk (who shall also be available to street duty at the discretion and direction of the OIC)

-3-

Minimum Staffing:

1 Lieutenant or Sergeant

6 Patrolmen

1 Desk (who shall also be available to street duty at the discretion and direction of the OIC)

Any deviation, resulting in the hiring of overtime, from the attached schedule shall require the prior approval of Executive Officer or Patrol Captain. Executive Officer or Patrol Captain shall in each instance submit in writing the justification for such additional overtime hiring.

RLC/jmf

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
CITY OF PEABODY
AND THE
PEABODY BENEVOLENT ASSOCIATION
MCOP LOCAL 351, AFL-CIO

WHEREAS, the City of Peabody ("City") and the Peabody Police Benevolent Association, MCOP Local 351, AFL-CIO ("Union") entered into a Memorandum of Agreement dated August 30, 2018 ("MOA") which modified their collective bargaining agreement for the July 1, 2018 through June 30, 2018 term; and

WHEREAS, paragraph 3 of the MOA established a 2% wage step effective July 1, 2018 for all officers classified as patrolmen who have attained 15 years of service in the Peabody Police Department; and

WHEREAS, the parties desire to clarify their intent that the application of the 2% wage step applies to patrolmen who are Specialty Officers;

NOW THEREFORE, the City and the Union hereby agree to the following:

1. The 2% wage step increase in the MOA is for all officers classified as patrolmen who have attained 15 years of service in the Peabody Police Department including all patrolmen who are assigned as Specialty Officers.
2. The pay rates and retroactive pay of Specialty Officers shall be adjusted as of July 1, 2018 in accordance with this Memorandum of Understanding.

Executed this _____ of November, 2018

For the City of Peabody

For the Peabody Police Benevolent Association
MCOP Local 351, AFL-CIO

By: _____
Edward A. Bettencourt, Jr. Mayor

Richard F. Rose, President